

Contract for the sale and purchase of land - 2026 edition

TERM	MEANING OF TERM	NSW DAN:
vendor's agent	BRESIC WHITNEY ESTATE AGENTS Level 2, 318 Liverpool Street Darlinghurst NSW 2010 catherined@bw.com.au & michael@bw.com.au	phone 02 9356 5555 fax ref Catherine & Michael
co-agent	Not Applicable	phone fax ref
vendor	DAVID GUY ROBERT JONES and PAUL ALASTAIR JONES and SARAH CAROLINE JONES	
vendor's solicitor	BARTIER PERRY Level 25, 161 Castlereagh St, Sydney NSW 2000 PO Box 2631, Sydney NSW 2001 email: KFerreira@bartier.com.au	phone +61 2 8281 7800 fax +61 2 8281 7838 ref KNF 2603489
date of completion	See Special Condition 6	
Land (address, plan details and title reference)	21 NORFOLK STREET, PADDINGTON NSW 2021 Registered Plan: Lot A in Deposited Plan 447337 Folio Identifier A/447337	
improvements	☒ VACANT POSSESSION ☐ subject to existing tenancies ☒ HOUSE ☒ garage ☐ carport ☐ home unit ☐ carspace ☐ storage space ☐ none ☐ other:	
attached copies	☒ documents in the List of Documents as marked or numbered: ☐ other documents:	

A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

inclusions	☒ air conditioning ☒ blinds ☒ built-in wardrobes ☒ ceiling fans ☐ clothes line	☐ curtains ☐ dishwasher ☐ EV charger ☒ fixed floor coverings ☐ other:	☐ insect screens ☐ Internet/TV receiver ☒ light fittings ☐ pool equipment	☒ range hood ☐ solar panels ☐ solar power battery ☒ stove
exclusions				
purchaser				
purchaser's ☐ solicitor ☐ conveyancer	email:		phone fax ref	
price	\$			
deposit	\$			(10% of the price, unless otherwise stated)
balance	\$			
contract date				(if not stated, the date this contract was made)

Where there is more than one purchaser ☐ JOINT TENANTS
☐ tenants in common ☐ in unequal shares

GST AMOUNT (optional) ~~The price includes GST of \$~~

buyer's agent

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

SIGNING PAGE

VENDOR	PURCHASER																								
Signed by _____ Vendor _____ Vendor _____ Vendor	Signed by _____ Purchaser _____ Purchaser																								
VENDOR (COMPANY)	PURCHASER (COMPANY)																								
Signed by _____ in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: <table border="0"> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Signature of authorised person</td> <td>Signature of authorised person</td> </tr> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Name of authorised person</td> <td>Name of authorised person</td> </tr> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Office held</td> <td>Office held</td> </tr> </table>	_____	_____	Signature of authorised person	Signature of authorised person	_____	_____	Name of authorised person	Name of authorised person	_____	_____	Office held	Office held	Signed by _____ in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: <table border="0"> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Signature of authorised person</td> <td>Signature of authorised person</td> </tr> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Name of authorised person</td> <td>Name of authorised person</td> </tr> <tr> <td>_____</td> <td>_____</td> </tr> <tr> <td>Office held</td> <td>Office held</td> </tr> </table>	_____	_____	Signature of authorised person	Signature of authorised person	_____	_____	Name of authorised person	Name of authorised person	_____	_____	Office held	Office held
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Choices

Vendor agrees to accept a **deposit-bond** ☒ NO ☐ yes

Nominated Electronic Lodgment Network ELN (clause 4) PEXA Platform

Manual transaction (clause 30) ☒ NO ☐ yes

(if yes, vendor must provide further details, including any applicable exception, in the space below):

Parties agree that the deposit be invested (clause 2.9) ☒ NO ☐ yes

Tax information (the parties promise this is correct as far as each party is aware)

Land tax is adjustable ☒ NO ☐ yes

GST: Taxable supply ☒ NO ☐ yes in full ☐ yes to an extent

Margin scheme will be used in making the taxable supply ☒ NO ☐ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☒ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make a **GSTRW payment:** (GST residential withholding payment) ☒ NO ☐ yes (if yes, vendor must provide further details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

GSTRW payment (GST residential withholding payment) – further details

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name:

Supplier's ABN:

Supplier's GST branch number (if applicable):

Supplier's business address:

Supplier's representative:

Supplier's contact phone number:

Supplier's proportion of **GSTRW payment**:

If more than one supplier, provide the above details for each supplier.

Amount purchaser must pay – price multiplied by the **GSTRW rate** (residential withholding rate): \$

Amount must be paid: ☐ AT COMPLETION ☐ at another time (specify):

Is any of the consideration not expressed as an amount in money? ☐ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

List of Documents

General ☒ 1 property certificate for the land ☒ 2 plan of the land ☐ 3 unregistered plan of the land ☐ 4 plan of land to be subdivided ☐ 5 document to be lodged with a relevant plan ☒ 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979 ☐ 7 additional information included in that certificate under section 10.7(5) ☐ 8 sewerage infrastructure location diagram (service location print) ☐ 9 sewer lines location diagram (sewer service diagram) ☐ 10 document that created or may have created an easement, profit a prendre, restriction on use or positive covenant disclosed in this contract ☐ 11 <i>planning agreement</i> ☐ 12 section 88G certificate (positive covenant) ☐ 13 survey report ☐ 14 building information certificate or building certificate given under <i>legislation</i> ☐ 15 occupation certificate ☐ 16 lease (with every relevant memorandum or variation) ☐ 17 other document relevant to tenancies ☐ 18 licence benefiting the land ☐ 19 old system document ☐ 20 Crown purchase statement of account ☐ 21 building management statement ☐ 22 form of requisitions ☐ 23 <i>clearance certificate</i> ☒ 24 land tax certificate Home Building Act 1989 ☐ 25 insurance certificate ☐ 26 brochure or warning ☐ 27 evidence of alternative indemnity cover Swimming Pools Act 1992 ☐ 28 certificate of compliance ☐ 29 evidence of registration ☐ 30 relevant occupation certificate ☐ 31 certificate of non-compliance ☐ 32 detailed reasons of non-compliance	Strata or community title (clause 23 of the contract) ☐ 33 property certificate for strata common property ☐ 34 plan creating strata common property ☐ 35 strata by-laws ☐ 36 strata development contract ☐ 37 strata management statement ☐ 38 strata renewal proposal ☐ 39 strata renewal plan ☐ 40 leasehold strata – lease of lot and common property ☐ 41 property certificate for neighbourhood property ☐ 42 plan creating neighbourhood property ☐ 43 neighbourhood development contract ☐ 44 neighbourhood management statement ☐ 45 property certificate for precinct property ☐ 46 plan creating precinct property ☐ 47 precinct development contract ☐ 48 precinct management statement ☐ 49 property certificate for community property ☐ 50 plan creating community property ☐ 51 community development contract ☐ 52 community management statement ☐ 53 document disclosing a change of by-laws ☐ 54 document disclosing a change in a development contract or management statement ☐ 55 document disclosing a change in boundaries ☐ 56 information certificate (strata) ☐ 57 information certificate (association) ☐ 58 document relevant to an exclusive supply network ☐ 59 disclosure statement – off the plan contract ☐ 60 other document relevant to off the plan contract Other ☐ 61 Other: Not Applicable
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HOLDER OF STRATA OR COMMUNITY SCHEME RECORDS – Name, address, email address and telephone number

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

WARNING—SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms, or in certain cases heat alarms, installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

WARNING—LOOSE-FILL ASBESTOS INSULATION

Before purchasing land that includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, built before 1985, a purchaser is strongly advised to consider the possibility that the premises may contain loose-fill asbestos insulation, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A. In particular, a purchaser should—

- (a) search the Register required to be maintained under the *Home Building Act 1989*, Part 8, Division 1A, and
- (b) ask the relevant local council whether it holds records showing that the residential premises contain loose-fill asbestos insulation.

For further information about loose-fill asbestos insulation, including areas in which residential premises have been identified as containing loose-fill asbestos insulation, contact NSW Fair Trading.

Cooling off period (purchaser's rights)

- 1** This is the statement required by the *Conveyancing Act 1919*, section 66X. This statement applies to a contract for the sale of residential property.
- 2** **EXCEPT** in the circumstances listed in paragraph 3, the purchaser may rescind the contract before 5pm on—
 - (a) for an off the plan contract—the tenth business day after the day on which the contract was made, or
 - (b) in any other case—the fifth business day after the day on which the contract was made.
- 3** There is **NO COOLING OFF PERIOD**—
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor, or the vendor's solicitor or agent, a certificate that complies with the Act, section 66W, or
 - (b) if the property is sold by public auction, or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in, or
 - (d) if the contract is made in consequence of the exercise of an option, other than an option that is void under the Act, section 66ZG.
- 4** A purchaser exercising the right to cool off by rescinding the contract forfeits 0.25% of the purchase price of the property to the vendor.
- 5** The vendor is entitled to recover the forfeited amount from an amount paid by the purchaser as a deposit under the contract. The purchaser is entitled to a refund of any balance.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures to resolve the dispute such as negotiation, independent expert appraisal, the Law Society Conveyancing Dispute Resolution Scheme or mediation (for example mediation under the Law Society Mediation Program).

AUCTIONS

Regulations made under the Property and Stock Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNINGS

1. Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving:

Australian Taxation Office County Council Department of Education Department of Planning, Housing and Infrastructure Department of Primary Industries and Regional Development Electricity, gas and telecommunications Homes NSW	Local Council Local Land Services NSW Fair Trading NSW Public Works Owner of adjoining land Privacy Subsidence Advisory NSW Transport agencies Water, sewerage or drainage authority
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If you think that any of these matters affects the property, tell your solicitor.
2. A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 2010 or the Retail Leases Act 1994.
3. If any purchase money is owing to the Crown, it will become payable before obtaining consent, or if no consent is needed, when the transfer is registered.
4. If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
5. The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
6. Most purchasers will have to pay transfer duty (and, sometimes, if the purchaser is not an Australian citizen, surcharge purchaser duty) on this contract. If a payment is not made on time, interest and penalties may be incurred. More information is available from Revenue NSW.
7. If the purchaser agrees to the release of deposit, the purchaser's right to recover the deposit may stand behind the rights of others (for example the vendor's mortgagee).
8. The purchaser should arrange insurance as appropriate.
9. Some transactions involving personal property may be affected by the Personal Property Securities Act 2009.
10. A purchaser should be satisfied that finance will be available at the time of completing the purchase.
11. The purchaser may have to comply with a foreign resident capital gains withholding payment obligation (even if the vendor is not a foreign resident). If so, this will affect the amount available to the vendor on completion.
12. Purchasers of some residential properties may have to withhold part of the purchase price to be credited towards the GST liability of the vendor. If so, this will also affect the amount available to the vendor. More information is available from the Australian Taxation Office.
13. From 1 July 2026, estate agents, solicitors, licensed conveyancers and other professions who provide a designated service will have regulatory obligations under the Anti-Money Laundering and Counter-Terrorism Financing (AML/CTF) regime. These new obligations include customer due diligence and reporting to AUSTRAC. More details are available from AUSTRAC.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in italics is a defined term)

1.1 In this contract, these terms (in any form) mean –

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>adjustment figures</i>	details of the adjustments to be made to the price under clause 14;
<i>authorised Subscriber</i>	a <i>Subscriber</i> (not being a <i>party's solicitor</i>) named in a notice <i>served</i> by a <i>party</i> as being authorised for the purposes of clause 20.6.8;
<i>bank</i>	the Reserve Bank of Australia or an authorised deposit-taking institution which is a bank, a building society or a credit union;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>clearance certificate</i>	a certificate within the meaning of s14-220 of Schedule 1 to the <i>TA Act</i> , that covers one or more days falling within the period from and including the contract date to completion;
<i>completion time</i>	the time of day at which completion is to occur;
<i>deposit-bond</i>	a deposit bond or guarantee with each of the following approved by the vendor – • the issuer; • the expiry date (if any); and • the amount;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i> , or if no vendor's <i>solicitor</i> is named in this contract, the buyer's agent);
<i>discharging mortgagee</i>	any discharging mortgagee, chargee, covenant chargee or caveator whose provision of a <i>Digitally Signed</i> discharge of mortgage, discharge of charge or withdrawal of caveat is required in order for unencumbered title to the <i>property</i> to be transferred to the purchaser;
<i>document of title</i>	document relevant to the title or the passing of title;
<i>ECNL</i>	the Electronic Conveyancing National Law (NSW);
<i>electronic document</i>	a dealing as defined in the Real Property Act 1900 which may be created and <i>Digitally Signed</i> in an <i>Electronic Workspace</i> ;
<i>electronic transaction</i>	a <i>Conveyancing Transaction</i> to be conducted for the <i>parties</i> by their legal representatives as <i>Subscribers</i> using an <i>ELN</i> and in accordance with the <i>ECNL</i> and the <i>participation rules</i> ;
<i>electronic transfer</i>	a transfer of land under the Real Property Act 1900 for the <i>property</i> to be prepared and <i>Digitally Signed</i> in the <i>Electronic Workspace</i> established for the purposes of the <i>parties' Conveyancing Transaction</i> ;
<i>FRCGW percentage</i>	the percentage mentioned in s14-200(3)(a) of Schedule 1 to the <i>TA Act</i> (15% as at 1 January 2025);
<i>FRCGW remittance</i>	a remittance which the purchaser must make under s14-200 of Schedule 1 to the <i>TA Act</i> , being the lesser of the <i>FRCGW percentage</i> of the price (inclusive of GST, if any) and the amount specified in a <i>variation served</i> by a <i>party</i> ;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in s4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>GSTRW payment</i>	a payment which the purchaser must make under s14-250 of Schedule 1 to the <i>TA Act</i> (the price multiplied by the <i>GSTRW rate</i>);
<i>GSTRW rate</i>	the rate determined under ss14-250(6), (8) or (9) of Schedule 1 to the <i>TA Act</i> (as at 1 July 2018, usually 7% of the price if the margin scheme applies, 1/11 th if not);
<i>incoming mortgagee</i>	any mortgagee who is to provide finance to the purchaser on the security of the <i>property</i> and to enable the purchaser to pay the whole or part of the price;
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>manual transaction</i>	a <i>Conveyancing Transaction</i> in which a dealing forming part of the <i>Lodgment Case</i> at or following completion cannot be <i>Digitally Signed</i> ;
<i>normally</i>	subject to any other provision of this contract;
<i>participation rules</i>	the participation rules as determined by the <i>ECNL</i> ;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>planning agreement</i>	a valid voluntary agreement within the meaning of s7.4 of the Environmental Planning and Assessment Act 1979 entered into in relation to the <i>property</i> ;
<i>populate</i>	to complete data fields in the <i>Electronic Workspace</i> ;

<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and – • issued by a <i>bank</i> and drawn on itself; or • if authorised in writing by the vendor or the vendor's <i>solicitor</i>, some other <i>cheque</i>;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice <i>served</i> by the <i>party</i> ;
<i>TA Act</i>	Taxation Administration Act 1953;
<i>terminate</i>	terminate this contract for breach;
<i>title data</i>	the details of the title to the <i>property</i> made available to the <i>Electronic Workspace</i> by the <i>Land Registry</i> ;
<i>variation</i>	a variation made under s14-235 of Schedule 1 to the <i>TA Act</i> ;
<i>within</i>	in relation to a period, at any time before or during the period; and
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road (but the term does not include a notice under s22E of the Swimming Pools Act 1992 or clause 20 of the Swimming Pools Regulation 2018).

- 1.2 Words and phrases used in this contract (italicised and in Title Case, such as *Conveyancing Transaction*, *Digitally Sign*, *Electronic Workspace*, *ELN*, *ELNO*, *Land Registry*, *Lodgment Case* and *Subscriber*) have the meanings given in the *participation rules*.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit by –
- 2.4.1 giving cash (up to \$2,000) to the *depositholder*;
 - 2.4.2 unconditionally giving a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*; or
 - 2.4.3 electronic funds transfer to the *depositholder's* nominated account and, if requested by the vendor or the *depositholder*, providing evidence of that transfer.
- 2.5 The vendor can *terminate* if –
- 2.5.1 any of the deposit is not paid on time;
 - 2.5.2 a *cheque* for any of the deposit is not honoured on presentation; or
 - 2.5.3 a payment under clause 2.4.3 is not received in the *depositholder's* nominated account by 5.00 pm on the third *business day* after the time for payment.
- This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a *deposit-bond* for the deposit, clauses 2.1 to 2.5 do not apply.
- 2.7 If the vendor accepts a *deposit-bond* for part of the deposit, clauses 2.1 to 2.5 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Deposit-bond

- 3.1 This clause applies only if the vendor accepts a *deposit-bond* for the deposit (or part of it).
- 3.2 The purchaser must provide the *deposit-bond* to the vendor's *solicitor* (or if no solicitor the *depositholder*) at or before the making of this contract and this time is essential.
- 3.3 If the *deposit-bond* has an expiry date and completion does not occur by the date which is 14 days before the expiry date, the purchaser must *serve* a replacement *deposit-bond* at least 7 days before the expiry date. The time for service is essential.
- 3.4 The vendor must approve a replacement *deposit-bond* if –
- 3.4.1 it is from the same issuer and for the same amount as the earlier *deposit-bond*; and
 - 3.4.2 it has an expiry date at least three months after its date of issue.
- 3.5 A breach of clauses 3.2 or 3.3 entitles the vendor to *terminate*. The right to *terminate* is lost as soon as –
- 3.5.1 the purchaser *serves* a replacement *deposit-bond*; or
 - 3.5.2 the deposit is paid in full under clause 2.
- 3.6 Clauses 3.3 and 3.4 can operate more than once.

- 3.7 If the purchaser *serves* a replacement *deposit-bond*, the vendor must *serve* the earlier *deposit-bond*.
- 3.8 The amount of any *deposit-bond* does not form part of the price for the purposes of clause 16.5.
- 3.9 The vendor must give the purchaser any original *deposit-bond* –
- 3.9.1 on completion; or
 - 3.9.2 if this contract is *rescinded*.
- 3.10 If this contract is *terminated* by the vendor –
- 3.10.1 *normally*, the vendor can immediately demand payment from the issuer of the *deposit-bond*; or
 - 3.10.2 if the purchaser *serves* prior to *termination* a notice disputing the vendor's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 3.11 If this contract is *terminated* by the purchaser –
- 3.11.1 *normally*, the vendor must give the purchaser any original *deposit-bond*; or
 - 3.11.2 if the vendor *serves* prior to *termination* a notice disputing the purchaser's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 4 Electronic transaction**
- 4.1 This *Conveyancing Transaction* is to be conducted as an *electronic transaction* unless –
- 4.1.1 the contract says this transaction is a *manual transaction*, giving the reason, or
 - 4.1.2 a *party* *serves* a notice stating why the transaction is a *manual transaction*, in which case the *parties* do not have to complete earlier than 14 days after *service* of the notice, and clause 21.3 does not apply to this provision,
- and in both cases clause 30 applies.
- 4.2 If, because of clause 4.1.2, this *Conveyancing Transaction* is to be conducted as a *manual transaction* –
- 4.2.1 each *party* must –
 - bear equally any disbursements or fees; and
 - otherwise bear that *party's* own costs;
 incurred because this *Conveyancing Transaction* was to be conducted as an *electronic transaction*; and
 - 4.2.2 if a *party* has paid all of a disbursement or fee which, by reason of this clause, is to be borne equally by the *parties*, that amount must be adjusted under clause 14.
- 4.3 The *parties* must conduct the *electronic transaction* –
- 4.3.1 in accordance with the *participation rules* and the *ECNL*; and
 - 4.3.2 using the nominated *ELN*, unless the *parties* otherwise agree. This clause 4.3.2 does not prevent a *party* using an *ELN* which can interoperate with the nominated *ELN*.
- 4.4 A *party* must pay the fees and charges payable by that *party* to the *ELNO* and the *Land Registry*.
- 4.5 *Normally*, the vendor must *within 7 days* of the contract date create and *populate* an *Electronic Workspace* with *title data* and the date for completion, and invite the purchaser to the *Electronic Workspace*.
- 4.6 If the vendor has not created an *Electronic Workspace* in accordance with clause 4.5, the purchaser may create and *populate* an *Electronic Workspace* and, if it does so, the purchaser must invite the vendor to the *Electronic Workspace*.
- 4.7 The *parties* must, as applicable to their role in the *Conveyancing Transaction* and the steps taken under clauses 4.5 or 4.6 –
- 4.7.1 promptly join the *Electronic Workspace* after receipt of an invitation;
 - 4.7.2 create and *populate* an *electronic transfer*;
 - 4.7.3 invite any *discharging mortgagee* or *incoming mortgagee* to join the *Electronic Workspace*; and
 - 4.7.4 *populate* the *Electronic Workspace* with a nominated *completion time*.
- 4.8 If the transferee in the *electronic transfer* is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
- 4.9 The vendor can require the purchaser to include a covenant or easement in the *electronic transfer* only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
- 4.10 If the purchaser must make a *GSTRW payment* or an *FRCGW remittance*, the purchaser must *populate* the *Electronic Workspace* with the payment details for the *GSTRW payment* or *FRCGW remittance* payable to the Deputy Commissioner of Taxation at least 2 *business days* before the date for completion.
- 4.11 Before completion, the *parties* must ensure that –
- 4.11.1 all *electronic documents* which a *party* must *Digitally Sign* to complete the *electronic transaction* are *populated* and *Digitally Signed*;
 - 4.11.2 all certifications required by the *ECNL* are properly given; and
 - 4.11.3 they do everything else in the *Electronic Workspace* which that *party* must do to enable the *electronic transaction* to proceed to completion.
- 4.12 If the computer systems of any of the *Land Registry*, the *ELNO*, Revenue NSW or the Reserve Bank of Australia are inoperative for any reason at the *completion time* agreed by the *parties*, a failure to complete this contract for that reason is not a default under this contract on the part of either *party*.

- 4.13 If the computer systems of the *Land Registry* are inoperative for any reason at the *completion time* agreed by the *parties*, and the *parties* choose that financial settlement is to occur despite this, then on financial settlement occurring –
- 4.13.1 all *electronic documents Digitally Signed* by the vendor and any discharge of mortgage, withdrawal of caveat or other *electronic document* forming part of the *Lodgment Case* for the *electronic transaction* are taken to have been unconditionally and irrevocably delivered to the purchaser or the purchaser's mortgagee at the time of financial settlement together with the right to deal with the land; and
- 4.13.2 the vendor is taken to have no legal or equitable interest in the *property*.
- 4.14 If the *parties* do not agree about the delivery before completion of one or more documents or things that cannot be delivered through the *Electronic Workspace*, the *party* required to deliver the documents or things –
- 4.14.1 holds them on completion in escrow for the benefit of; and
- 4.14.2 must immediately after completion deliver the documents or things to, or as directed by; the *party* entitled to them.

5 Requisitions

- 5.1 If a form of *requisitions* is attached to this contract, the purchaser is taken to have made those *requisitions*.
- 5.2 If the purchaser is or becomes entitled to make any other *requisition*, the purchaser can make it only by *serving* it –
- 5.2.1 if it arises out of this contract or it is a general question about the *property* or title - *within* 21 days after the contract date;
- 5.2.2 if it arises out of anything *served* by the vendor - *within* 21 days after the later of the contract date and that *service*; and
- 5.2.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 *Normally*, the purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

- Normally*, the purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion –
- 7.1 the vendor can *rescind* if in the case of claims that are not claims for delay –
- 7.1.1 the total amount claimed exceeds 5% of the price;
- 7.1.2 the vendor *serves* notice of intention to *rescind*; and
- 7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and
- 7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed –
- 7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;
- 7.2.2 the amount held is to be invested in accordance with clause 2.9;
- 7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);
- 7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the costs of the purchaser;
- 7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held is paid; and
- 7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse and the amount belongs to the vendor.

8 Vendor's rights and obligations

- 8.1 The vendor can *rescind* if –
- 8.1.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;
- 8.1.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and
- 8.1.3 the purchaser does not *serve* a notice waiving the *requisition* *within* 14 days after that *service*.

- 8.2 If the vendor does not comply with this contract (or a notice under or relating to it) in an essential respect, the purchaser can *terminate* by *serving* a notice. After the *termination* –
- 8.2.1 the purchaser can recover the deposit and any other money paid by the purchaser under this contract;
 - 8.2.2 the purchaser can sue the vendor to recover damages for breach of contract; and
 - 8.2.3 if the purchaser has been in possession a *party* can claim for a reasonable adjustment.

9 Purchaser's default

If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can –

- 9.1 keep or recover the deposit (to a maximum of 10% of the price);
- 9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause –
 - 9.2.1 for 12 months after the *termination*; or
 - 9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and
- 9.3 sue the purchaser either –
 - 9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover –
 - the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
 - the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or
 - 9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

- 10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
 - 10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;
 - 10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);
 - 10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;
 - 10.1.4 any change in the *property* due to fair wear and tear before completion;
 - 10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;
 - 10.1.6 a condition, exception, reservation or restriction in a Crown grant;
 - 10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;
 - 10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or
 - 10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage, priority notice or writ).
- 10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.
- 10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

The vendor must do whatever is reasonably necessary to enable the purchaser, subject to the rights of any tenant –

- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for –
 - 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
 - 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 Terms used in this clause which are not defined elsewhere in this contract and have a defined meaning in the *GST Act* have the same meaning in this clause.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract, GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment or payment for an expense of another party or pay an expense payable by or to a third party (for example, under clauses 14 or 20.7), the *party* must adjust or pay on completion any GST added to or included in the expense, but –
- 13.3.1 the amount of the expense must be reduced to the extent the party receiving the adjustment or payment (or the representative member of a GST group of which that party is a member) is entitled to an input tax credit for the expense; and
- 13.3.2 if the adjustment or payment under this contract is consideration for a taxable supply, an amount for GST must be added at the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern –
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
- 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
- 13.4.3 if the purchaser is not registered by the date for completion, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows –
- if *within* 3 months of completion the purchaser *serves* a letter from the Australian Taxation Office stating the purchaser is registered with a date of effect of registration on or before completion, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not *serve* that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
- 13.4.4 if the vendor, despite clause 13.4.1, *serves* a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the *parties* agree that the margin scheme is to apply to the sale of the *property*.
- 13.7 If this contract says the sale is not a taxable supply –
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
- 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of –
- a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if –
- 13.8.1 this sale is not a taxable supply in full; or
- 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent –
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
- 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.
- 13.12 If the vendor is liable for GST on rents or profits due to issuing an invoice or receiving consideration before completion, any adjustment of those amounts must exclude an amount equal to the vendor's GST liability.
- 13.13 If the vendor *serves* details of a *GSTRW payment* which the purchaser must make, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 13.14 If the purchaser must make a *GSTRW payment* the purchaser must, at least 2 *business days* before the date for completion, *serve* evidence of submission of a *GSTRW payment* notification form to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax, levies and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion, and –
- 14.2.1 the purchaser must provide the vendor with *adjustment figures* at least 2 *business days* before the date for completion; and
- 14.2.2 the vendor must confirm the *adjustment figures* at least 1 *business day* before the date for completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must not adjust surcharge land tax (as defined in the Land Tax Act 1956) but must adjust any other land tax for the year current at the *adjustment date* –
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
- 14.4.2 by adjusting the amount that would have been payable if at the start of the year –
- the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 The *parties* must not adjust any first home buyer choice property tax.
- 14.6 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Date for completion

The *parties* must complete by the date for completion and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion

• Vendor

- 16.1 *Normally*, on completion the vendor must cause the legal title to the *property* (being the estate disclosed in this contract) to pass to the purchaser free of any charge, mortgage or other interest, subject to any necessary registration.
- 16.2 The legal title to the *property* does not pass before completion.
- 16.3 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser.
- 16.4 If a *party* serves a land tax certificate showing a charge on any of the land, by completion the vendor must do all things and pay all money required so that the charge is no longer effective against the land.

• Purchaser

- 16.5 On completion the purchaser must pay to the vendor –
- 16.5.1 the price less any –
- deposit paid;
 - *FRCGW remittance* payable;
 - *GSTRW payment*; and
 - amount payable by the vendor to the purchaser under this contract; and
- 16.5.2 any other amount payable by the purchaser under this contract.
- 16.6 If any of the deposit is not covered by a *deposit-bond*, at least 1 *business day* before the date for completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit, to be held by the vendor in escrow until completion.
- 16.7 On completion the deposit belongs to the vendor.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if –
- 17.2.1 this contract says that the sale is subject to existing tenancies; and
- 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Schedule 2, Part 7 of the Residential Tenancies Act 2010).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion –
- 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property*; or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion –
- 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor –
- 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate prescribed under s101 Civil Procedure Act 2005.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the *party* can exercise the right –
- 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* –
- 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is –
- 20.6.1 signed by a *party* if it is signed by the *party* or the *party's solicitor* (apart from a direction under clause 4.8 or clause 30.4);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by email or fax to the *party's solicitor*, unless in either case it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person;
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once; and
 - 20.6.8 *served* if it is provided to or by the *party's solicitor* or an *authorised Subscriber* by means of an *Electronic Workspace* created under clause 4. However, this does not apply to a notice making an obligation essential, or a notice of *rescission* or *termination*.
- 20.7 An obligation to pay an expense of another *party* of doing something is an obligation to pay –
- 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 4, 11, 13, 14, 17, 24, 30 and 31 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* (including any percentage or rate specified in *legislation*) is also a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.

- 20.14 The details and information provided in this contract (for example, on pages 1 - 4) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.
- 20.16 Each *party* consents to –
- 20.16.1 any *party* signing this contract electronically; and
 - 20.16.2 the making of this contract by the exchange of counterparts delivered by email, or by such other electronic means as may be agreed by the *parties*.
- 20.17 Each *party* agrees that electronic signing by a *party* identifies that *party* and indicates that *party's* intention to be bound by this contract.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.
- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clauses 2 and 3.2.
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

• Definitions and modifications

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract –
- 23.2.1 'change', in relation to a scheme, means –
 - a registered or registrable change from by-laws set out in this contract;
 - a change from a development contract or management statement set out in this contract; or
 - a change in the boundaries of common property;
 - 23.2.2 'common property' includes association property for the scheme or any higher scheme;
 - 23.2.3 'contribution' includes an amount payable under a by-law;
 - 23.2.4 'information certificate' includes a certificate under s184 Strata Schemes Management Act 2015 and s174 Community Land Management Act 2021;
 - 23.2.5 'interest notice' includes a strata interest notice under s22 Strata Schemes Management Act 2015 and an association interest notice under s20 Community Land Management Act 2021;
 - 23.2.6 'normal expenses', in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
 - 23.2.7 'owners corporation' means the owners corporation or the association for the scheme or any higher scheme;
 - 23.2.8 'the *property*' includes any interest in common property for the scheme associated with the lot; and
 - 23.2.9 'special expenses', in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are –
 - normal expenses;
 - due to fair wear and tear;
 - disclosed in this contract; or
 - covered by moneys held in the capital works fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.6 apply but on a unit entitlement basis instead of an area basis.
- ### • Adjustments and liability for expenses
- 23.5 The *parties* must adjust under clause 14.1 –
- 23.5.1 a regular periodic contribution;
 - 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
 - 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.

- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract –
- 23.6.1 the vendor is liable for it if it was determined on or before the contract date, even if it is payable by instalments; and
- 23.6.2 the purchaser is liable for all contributions determined after the contract date.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.1.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
- 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
- 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if –
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
- 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme, a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion;
- 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme materially prejudices the purchaser and is not disclosed in this contract; or
- 23.9.4 a resolution is passed by the owners corporation before the contract date or before completion to give to the owners in the scheme for their consideration a strata renewal plan that has not lapsed at the contract date and there is not attached to this contract a strata renewal proposal or the strata renewal plan.
- **Notices, certificates and inspections**
- 23.10 Before completion, the purchaser must *serve* a copy of an interest notice addressed to the owners corporation and signed by the purchaser.
- 23.11 After completion, the purchaser must insert the date of completion in the interest notice and send it to the owners corporation.
- 23.12 The vendor can complete and send the interest notice as agent for the purchaser.
- 23.13 The vendor must *serve* at least 7 days before the date for completion, an information certificate for the lot, the scheme or any higher scheme which relates to a period in which the date for completion falls.
- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the information certificate and clause 21.3 does not apply to this provision. On completion the purchaser must pay the vendor the prescribed fee for the information certificate.
- 23.15 The vendor authorises the purchaser to apply for the purchaser's own information certificate.
- 23.16 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- **Meetings of the owners corporation**
- 23.17 If a general meeting of the owners corporation is convened before completion –
- 23.17.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
- 23.17.2 after the expiry of any cooling off period, the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.

24 Tenancies

- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* –
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
- 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion –
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
- 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
- 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if –
- a disclosure statement required by the Retail Leases Act 1994 was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Retail Leases Act 1994.

- 24.4 If the *property* is subject to a tenancy on completion –
- 24.4.1 the vendor must allow or transfer –
- any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose; and
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose;
- 24.4.2 if the security is not transferable, each *party* must do whatever is reasonably necessary to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
- 24.4.3 the vendor must give to the purchaser –
- at least 2 *business days* before the date for completion, a proper notice of the transfer (an attornment notice) addressed to the tenant, to be held by the purchaser in escrow until completion;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
- 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
- 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 25 Qualified title, limited title and old system title**
- 25.1 This clause applies only if the land (or part of it) –
- 25.1.1 is under qualified, limited or old system title; or
- 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within 7 days* after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document –
- 25.4.1 shows its date, general nature, names of parties and any registration number; and
- 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title –
- 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
- 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
- 25.5.3 *normally*, need not include a Crown grant; and
- 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title –
- 25.6.1 in this contract 'transfer' means conveyance;
- 25.6.2 the purchaser does not have to *serve* the transfer until after the vendor has *served* a proper abstract of title; and
- 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title –
- 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
- 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
- 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 25.9 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 25.10 The vendor must give a proper covenant to produce where relevant.
- 25.11 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.12 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the *Land Registry* of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) cannot be transferred without consent under *legislation* or a *planning agreement*.
 27.2 The purchaser must properly complete and then *serve* the purchaser's part of an application for consent to transfer of the land (or part of it) *within 7 days* after the contract date.
 27.3 The vendor must apply for consent *within 7 days* after *service* of the purchaser's part.
 27.4 If consent is refused, either *party* can *rescind*.
 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can *rescind within 7 days* after receipt by or *service* upon the *party* of written notice of the conditions.
 27.6 If consent is not given or refused –
 27.6.1 *within 42 days* after the purchaser *serves* the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within 30 days* after the application is made, either *party* can *rescind*.
 27.7 Each period in clause 27.6 becomes 90 days if the land (or part of it) is –
 27.7.1 under a *planning agreement*; or
 27.7.2 in the Western Division.
 27.8 If the land (or part of it) is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
 27.9 The date for completion becomes the later of the date for completion and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
 28.2 The vendor must do whatever is reasonably necessary to have the plan registered *within 6 months* after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.
 28.3 If the plan is not registered *within* that time and in that manner –
 28.3.1 the purchaser can *rescind*; and
 28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2 and with any *legislation* governing the rescission.
 28.4 Either *party* can *serve* notice of the registration of the plan and every relevant lot and plan number.
 28.5 The date for completion becomes the later of the date for completion and 21 days after *service* of the notice.
 28.6 Clauses 28.2 and 28.3 apply to another plan that is to be registered before the plan is registered.

29 Conditional contract

- 29.1 This clause applies only if a provision says this contract or completion is conditional on an event, but does not apply to an event to which clause 28 applies.
 29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.
 29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.
 29.4 If anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.
 29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.
 29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either *party* *serves* notice of the condition.
 29.7 If the *parties* can lawfully complete without the event happening –
 29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;
 29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party* *serves* notice of the refusal; and
 29.7.3 the date for completion becomes the later of the date for completion and 21 days after the earliest of –
 • either *party* *serving* notice of the event happening;
 • every *party* who has the benefit of the provision *serving* notice waiving the provision; or
 • the end of the time for the event to happen.

- 29.8 If the *parties* cannot lawfully complete without the event happening –
- 29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;
 - 29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;
 - 29.8.3 the date for completion becomes the later of the date for completion and 21 days after either *party* serves notice of the event happening.
- 29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.
- 30 Manual transaction**
- 30.1 This clause applies if this transaction is to be conducted as a *manual transaction*.
- **Transfer**
- 30.2 *Normally*, the purchaser must *serve* the transfer at least 7 days before the date for completion.
- 30.3 If any information needed for the transfer is not disclosed in this contract, the vendor must *serve* it.
- 30.4 If the purchaser *serves* a transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
- 30.5 The vendor can require the purchaser to include a covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
- **Place for completion**
- 30.6 *Normally*, the *parties* must complete at the completion address, which is –
- 30.6.1 if a special completion address is stated in this contract - that address; or
 - 30.6.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
 - 30.6.3 in any other case - the vendor's *solicitor's* address stated in this contract.
- 30.7 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
- 30.8 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.
- **Payments on completion**
- 30.9 On completion the purchaser must pay to the vendor the amounts referred to in clauses 16.5.1 and 16.5.2, by cash (up to \$2,000) or *settlement cheque*.
- 30.10 *Normally*, the vendor can direct the purchaser to produce a *settlement cheque* on completion to pay an amount adjustable under this contract and if so –
- 30.10.1 the amount is to be treated as if it were paid; and
 - 30.10.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
- 30.11 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
- 30.12 If the purchaser must make a *GSTRW payment* the purchaser must –
- 30.12.1 produce on completion a *settlement cheque* for the *GSTRW payment* payable to the Deputy Commissioner of Taxation;
 - 30.12.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.12.3 *serve* evidence of receipt of payment of the *GSTRW payment* and a copy of the settlement date confirmation form submitted to the Australian Taxation Office.
- 30.13 If the purchaser must pay an *FRCGW remittance*, the purchaser must –
- 30.13.1 produce on completion a *settlement cheque* for the *FRCGW remittance* payable to the Deputy Commissioner of Taxation;
 - 30.13.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.13.3 *serve* evidence of receipt of payment of the *FRCGW remittance*.
- 31 Foreign Resident Capital Gains Withholding**
- 31.1 This clause applies only if –
- 31.1.1 the sale is not an excluded transaction within the meaning of s14-215 of Schedule 1 to the *TA Act*; and
 - 31.1.2 a *clearance certificate* in respect of every vendor is not attached to this contract.
- 31.2 If the vendor *serves* any *clearance certificate* or *variation*, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 31.3 The purchaser must at least 2 *business days* before the date for completion, *serve* evidence of submission of a purchaser payment notification to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.
- 31.4 The vendor cannot refuse to complete if the purchaser complies with clause 31.3 and, as applicable, clauses 4.10 or 30.13.
- 31.5 If the vendor *serves* in respect of every vendor either a *clearance certificate* or a *variation* to 0.00 percent, clauses 31.3 and 31.4 do not apply.

32 Residential off the plan contract

- 32.1 This clause applies if this contract is an off the plan contract within the meaning of Division 10 of Part 4 of the Conveyancing Act 1919 (the Division).
- 32.2 No provision of this contract has the effect of excluding, modifying or restricting the operation of the Division.
- 32.3 If the purchaser makes a claim for compensation under the terms prescribed by sections 4 to 6 of Schedule 3 to the Conveyancing (Sale of Land) Regulation 2022 –
- 32.3.1 the purchaser cannot make a claim under this contract about the same subject matter, including a claim under clauses 6 or 7; and
- 32.3.2 the claim for compensation is not a claim under this contract.

21 NORFOLK ST, PADDINGTON 2021

THESE ARE THE ADDITIONAL CLAUSES FORMING PART OF THE CONTRACT FOR SALE
BETWEEN **DAVID GUY ROBERT JONES, PAUL ALASTAIR JONES** and **SARAH CAROLINE
JONES** (AS VENDOR) AND (AS PURCHASER)

DATED: 2026

1. AMENDMENT TO STANDARD FORM

The printed standard form contract is amended as follows:

- 1.1 In clause 2.9 the following words are added after the word “equally”:
“if this contract is completed, and otherwise to the party entitled to the deposit”.
- 1.2 Clause 7.1.1 is deleted.
- 1.3 The following words are added at the end of clause 12.2.1
“other than a building certificate”.
- 1.4 Clause 14.4.2 is amended to read as follows:
“By adjusting the amount paid or payable by the vendor in respect of the property and the 3 bullet point paragraphs are deleted”.
- 1.5 In clause 23.13 and 23.14 the number “7” is replaced with the number “3”.
- 1.6 Clause 29 is deleted.

2. STATE OF REPAIR

- 2.1 The property, including all improvements and inclusions, is sold in its present condition and state of repair and subject to all faults and defects both latent and patent.
- 2.2 The purchaser acknowledges that the purchaser has had the opportunity to inspect the property and obtain its own expert reports.
- 2.3 The purchaser does not rely on any representation made by or on behalf of the vendor to the purchaser.

3. VENDOR DISCLOSURE

- 3.1 The purchaser acknowledges that the documents listed in the Index of Annexures at the end of these additional clauses are attached to and form part of this contract.
- 3.2 The purchaser acknowledges that all matters disclosed or described in this contract are specifically disclosed and clearly described.
- 3.3 The vendor does not warrant the accuracy or completeness of the matters set out in the documents attached to this contract.
- 3.4 The purchaser warrants that it is relying entirely on its own enquiries in relation to the documents attached to this contract.
- 3.5 The purchaser cannot make any claim or requisition or rescind or terminate because:
 - (a) of any matter disclosed or described in this contract; or
 - (b) any document attached to this contract is incomplete or inaccurate.

- 3.6 The purchaser acknowledges that it has not entered into this contract in reliance on any documents or brochures produced or any expressed or implied statement, representation, promise or warranty made by the vendor or on its behalf (including any real estate agent) in respect of any matter relating to the property or which has or may have an effect on the property.

4. AGENT

- 4.1 The purchaser warrants that the purchaser was not introduced to the vendor or the property directly or indirectly by any person other than the agent named in this contract.
- 4.2 The purchaser indemnifies the vendor from any loss sustained by the vendor as a result of a breach of this warranty, including in respect of legal fees and expenses incurred by the vendor in resisting any claim for commission.
- 4.3 This clause does not merge on completion.

5. DELAY IN COMPLETION

- 5.1 If completion does not occur by the date for completion, either party (not being in default) is entitled at any time after the date for completion to serve a notice to complete making time essential and requiring completion to take place not less than 14 days after service of the notice.
- 5.2 This notice may nominate a specified hour on the last day as the time for completion.
- 5.3 A notice to complete may be withdrawn at any time prior to completion.
- 5.4 If the purchaser does not complete this purchase by the date for completion, the purchaser must pay to the vendor on completion, in addition to the balance of the purchase price, an amount calculated at the rate of 10% per annum on the balance purchase price computed at a daily rate from the day immediately after the date for completion to the day on which the sale is actually completed. The purchaser agrees that this amount is a genuine pre-estimate of the vendor's loss caused by the delay in completion.
- 5.5 The provisions of this clause do not apply to the extent that any delay is caused or substantially contributed to by the vendor.

6. COMPLETION

- 6.1 Subject to clause 29.1, completion shall take place on the date which is the later of:
- (a) Forty-two (42) days from the date of the contract; and
 - (b) Fourteen (14) days after the day on which the vendor's solicitor provides the purchaser or the purchaser's solicitor with a clear Section 47 Land Tax Certificate.

7. PURCHASER'S WARRANTIES AND INDEMNITIES

- 7.1 The purchaser represents and warrants that:
- (a) the purchaser has not relied on or been induced to enter into this contract or proceed to completion by any representation, warranty or promise (including, but not limited to, the potential or present yield, use or development of the property) made by this contract or by or on behalf the vendor, its agent or solicitor;

- (b) in entering into this contract it has relied entirely on its own independent investigations and enquiries about the property; and
 - (c) the purchaser has obtained its own independent professional advice on the terms of this contract and on the nature of the property and its permitted uses.
- 7.2 The purchaser acknowledges that in entering into this contract the vendor has relied on the warranties given by the purchaser in this additional clause 7.
- 7.3 The purchaser indemnifies and keeps indemnified the vendor against any liability, loss or cost arising out of any breach of the warranties in this additional clause 7.
- 7.4 The vendor may recover from the purchaser a payment pursuant to the indemnity granted to the vendor under this additional clause 6 before the vendor makes the payment to the party which has successfully pursued a claim against the vendor in respect of which the indemnity is given.
- 7.5 The purchaser cannot make any claim, objection or requisition, delay completion or rescind or terminate this contract in respect of any information it has obtained in relation to the property as result of any matter raised in this clause.
- 7.6 This clause does not merge on completion.

8. LAND TAX

8.1 Unassessed Land Tax

The purchaser must accept the title and complete this contract notwithstanding that the property may be subject to a charge for any unassessed land tax at the date of completion. The purchaser shall on settlement accept the vendor's undertaking to pay all such land tax within the time limited for payment when an assessment issues.

9. VENDORS AS TRUSTEE

- 9.1 The parties agree that the vendors are entering into this contract as the Trustees ("the Trustee") of the Estate of the Late Jeanette Rae Jones ("the Trust") and not in any other capacity. A liability arising under or in connection with this contract is limited to and can be enforced against the Trustee only to the extent to which it can be satisfied out of the property of the Trust out of which the vendor as Trustee is actually indemnified for the liability. This limitation of the vendor's liability as Trustee applies despite any other provision of this contract and extends to all liabilities and obligations of the vendor in any way connected with any representation, warranty, conduct, omission, agreement or transaction related to this contract.
- 9.2 The purchaser may not sue the vendors personally or in any capacity other than as Trustee of the Trust and may not seek the appointment of a receiver (except in relation to property of the Trust), a liquidator, an administrator or any similar person to the vendors or prove in any liquidation, administration or arrangement of or affecting the vendors (except in relation to property of the Trust).
- 9.3 The provisions of this clause shall not apply to any obligation or liability of the vendors to the extent that it is not satisfied because under the instrument establishing the Trust or by operation of law there is a reduction in the extent of the vendor's indemnification as Trustee out of the assets of the Trust, as a result of the vendor's fraud, negligence or breach of trust.

10. FIRB APPROVAL

- 10.1 The purchaser warrants that if the purchaser is a natural person that is ordinarily resident in Australia and whether the purchaser is a natural person or corporation that the Foreign Acquisitions and Takeovers Act 1975 (Commonwealth) DOES NOT apply to the purchaser or to this purchase as that legislation currently applies or might apply. If the said Act applies to the purchaser and to this transaction in breach of the warranty contained in this clause, the purchaser agrees to indemnify and compensate the vendor in respect of any loss, damage, penalty, fine or legal costs which may be incurred by the vendor consequently thereof. This warranty and indemnity shall not merge on completion.

11. FOREIGN RESIDENT CAPITAL GAINS WITHHOLDING TAX

- 11.1 In this clause:

- (a) **Clearance Certificate** means a certificate within the meaning of s14-220 of Schedule 1 to the *Taxation Administration Act 1953* (Cth) (**Taxation Administration Act**), that covers one or more days falling within the period from and including the Contract date to completion;
- (b) **Commissioner** means the Commissioner for Taxation of Australia;
- (c) **Withholding Amount** means the amount that the purchaser is required to pay to the Commissioner for Taxation, determined in accordance with section 14-200(3) of the Taxation Administration Act.

- 11.2 Clauses 11.3 and 11.4 only apply when:

- (a) the sale is not an excluded transaction that falls within the meaning of S14-215 of Schedule 1 of Taxation Administration Act; and
- (b) a Clearance Certificate in respect of the vendor is not attached to this contract or has not been provided to the purchaser on or before the date that is 5 business days prior to the completion date.

- 11.3 No later than 3 business days before the completion date, the purchaser must give to the vendor:

- (a) written notice of the amount of the Withholding Amount together with the calculation of the Withholding Amount; and
- (b) evidence of the purchaser's submission of an advance notification by the purchaser of the requirement to pay the Withholding Amount, in the form approved by the Australian Taxation Office.

- 11.4 On completion, the purchaser must:

- (a) pay the Withholding Amount to the Commissioner by electronic funds transfer (or other electronic method the Australian Taxation Office approves from time to time for the purpose of paying the Withholding Amount) and provide to the vendor satisfactory evidence of payment to the Commissioner of the Withholding Amount; or
- (b) provide a copy of the receipt in respect of the payment of the Withholding Amount made to the Commissioner prior to completion.

12. GUARANTEE & INDEMNITY

12.1 In consideration of the vendor to enter into this contract at the request of the Guarantor the Guarantor hereby:

- (a) guarantees to the vendor the due and punctual performance by the purchaser of the terms and conditions contained or implied in this contract on the part of the purchaser to be performed or observed, including the due and punctual payment of all monies payable by the purchaser to the vendor under or in consequence of this contract or any breach thereof by the purchaser; and
- (b) covenants with the vendor that in the event of the purchaser in any respect failing to perform or observe any of the terms or conditions contained or implied in this contract on the purchaser's behalf to be performed or observed the Guarantor as a principal debtor shall indemnify the vendor against all losses, damages, costs or expenses which may be incurred by the vendor by reason of any and all failures on the part of the purchaser to perform and observe any of such terms and conditions.

12.2 This guarantee and indemnity shall in no way be determined, discharged or impaired by reason of any of the following:

- (a) any variation or variations whether with or without the consent or knowledge of the Guarantor or any other guarantor and whenever made, of any of the provisions of this contract; or
- (b) any breach or breaches whether wilful or otherwise of any of the obligations of the purchaser contained or implied in this contract, and whenever committed, whether with or without the consent or knowledge of the Guarantor or of the vendor or any other guarantor; or
- (c) the winding-up or dissolution of the purchaser or the Guarantor or any other guarantor; or
- (d) the death or the sequestration in bankruptcy of the estate of the purchaser or the Guarantor or any other guarantor; or
- (e) the unenforceability in whole or in part of this guarantee and indemnity against the Guarantor and any other guarantor or the fact that it has been held that this guarantee and indemnity is unenforceable against the Guarantor or any other guarantor; or
- (f) the fact that this contract is not duly executed by the vendor, the purchaser or the Guarantor or any other guarantor; or
- (g) any other fact, circumstance or thing whatsoever which but for this provision might determine, discharge or impair this guarantee and indemnity.

12.3 If there is more than one Guarantor then each and every reference to the Guarantor shall mean all such guarantors separately and together.

12.4 The Guarantor/s is/are:

SIGNED SEALED AND DELIVERED)
by the said)
in the presence of:

Witness

Signature

Name of Witness

Print Name

SIGNED SEALED AND DELIVERED)
by the said)
in the presence of:

Witness

Signature

Name of Witness

Print Name

13. CONTAMINATED LAND – PURCHASER’S INDEMNITY

- 13.1 The purchaser agrees to assume all responsibility for any contamination of the land and the purchaser shall be responsible to comply with any order, direction, notice or other requirement of the local council or any government agency (or a court vested with jurisdiction to hear and determine any appeal or review in that regard) in respect of the clean-up of any contamination.
- 13.2 The purchaser releases the vendor and shall indemnify the vendor and keep the vendor indemnified from and against all:
- (a) Environmental liabilities;
 - (b) contamination before, after or on the date for completion; and
 - (c) other liabilities arising under any environmental law, including any suit, claim, action or demand of any third party.
- 13.3 The purchaser must obtain from any subsequent purchaser of the property from the purchaser, an acknowledgment and indemnity in favour of the vendor on the same terms as the purchaser’s acknowledgment and indemnity set out in this clause.

13.4 For the purpose of this clause,

“contamination” in respect of the land means the presence, in, on or under the land of a substance matter or thing at the concentration above the concentration at which the substance matter or thing is normally present in, on or under land in the same locality, being a presence that presents a risk of harm to human health or any other aspect of the environment.

“Environmental liability” means any costs, fees, expenses, charges, losses, damages, penalties or other liabilities and outgoings suffered or incurred as a result of any order, direction, notice of other requirement of or any government agency (or a court vested with jurisdiction) to hear and determine any appeal or review in that regard) in respect of the clean-up of any contamination.

13.5 This clause does not merge on completion.

14. INCAPACITY

14.1 Without affecting any of the parties other rights or remedies, if either:

- (a) is an individual and dies or becomes bankrupt or becomes mentally ill or incapable of managing his own affairs, either party may rescind; or
- (b) is a company; and
 - (i) resolves to go into liquidation;
 - (ii) a petition for its winding up is presented and not withdrawn within 30 days after presentation;
 - (iii) enters into any scheme of arrangement with its creditors; or
 - (iv) a liquidator, provisional liquidator, trustee, receiver, receiver and manager, administrator or similar official is appointed over its assets or undertaking,

either party is regarded as not having complied with this contract in an essential respect and either party can terminate this contract under clause 9.

15. ALTERATIONS TO CONTRACT

Each party authorises its solicitor or any employee of that solicitor, at any time after signature and prior to the time of exchange of contracts, to make alterations to this contract, including the addition of annexures and any such alteration or addition shall be binding upon the party deemed to have authorised the same; and any annexure so added shall form part of the contract as if it was annexed prior to the contract being signed.

INDEX OF ANNEXURES

Additional Clauses

Index of Annexures

1. Folio Identifier A/447337;
2. Deposited Plan 447337;
3. Section 10.7(2) and Section 10.7(5) Certificate (*Environmental Planning and Assessment Act 1979*);
4. Sewer Location Print; and
5. Sewer Service Diagram.

NEW SOUTH WALES LAND REGISTRY SERVICES - TITLE SEARCH

FOLIO: A/447337

SEARCH DATE	TIME	EDITION NO	DATE
28/4/2026	1:06 PM	4	28/4/2026

LAND

LOT A IN DEPOSITED PLAN 447337
AT PADDINGTON
LOCAL GOVERNMENT AREA WOOLLAHRA
PARISH OF ALEXANDRIA COUNTY OF CUMBERLAND
TITLE DIAGRAM DP447337

FIRST SCHEDULE

DAVID GUY ROBERT JONES
PAUL ALASTAIR JONES
SARAH CAROLINE JONES
AS JOINT TENANTS (AE AW68447)

SECOND SCHEDULE (2 NOTIFICATIONS)

- 1 RESERVATIONS AND CONDITIONS IN THE CROWN GRANT(S)
- 2 LIMITED TITLE. LIMITATION PURSUANT TO SECTION 28T(4) OF THE REAL PROPERTY ACT, 1900. THE BOUNDARIES OF THE LAND COMPRISED HEREIN HAVE NOT BEEN INVESTIGATED BY THE REGISTRAR GENERAL.

NOTATIONS

UNREGISTERED DEALINGS: NIL

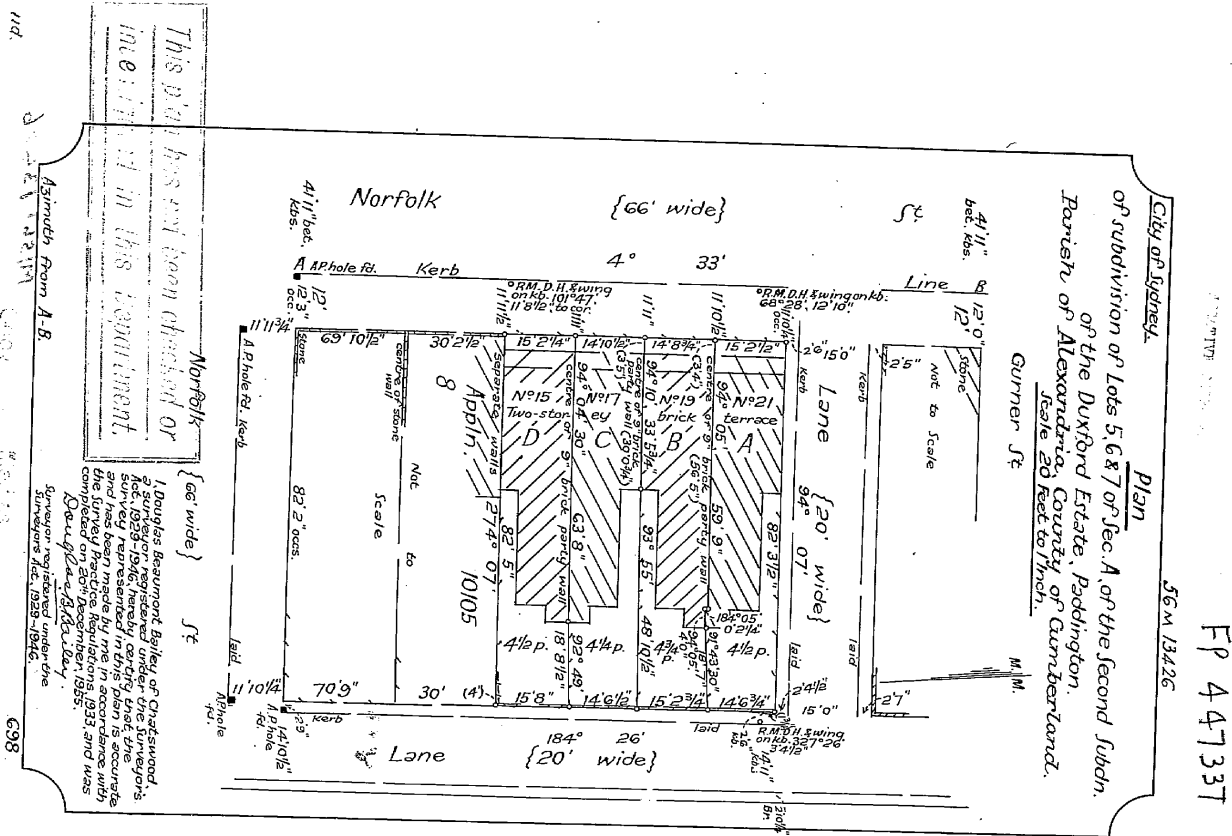
*** END OF SEARCH ***

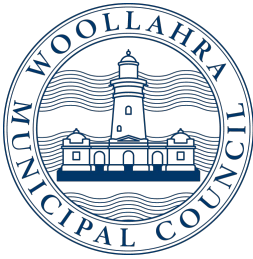
1

AMENDMENTS AND/OR ADDITIONS NOTED ON
PLAN BY REGISTRAR GENERAL'S OFFICE.

I, Bruce Richard Davies, Registrar General for New South Wales, certify that this negative is a photograph made as a permanent record of a document in my custody this 21st day of July, 1980

CONVERSION TABLE ADDED IN DEPARTMENT OF LANDS	
FEET INCHES	METRES
2 1/4	0.657
4	0.102
9	0.229
2 1/8	0.635
4 1/2	0.724
2	0.737
2	0.762
2	0.787
2	0.838
10 1/4	0.870
4 1/2	1.016
3	1.029
4	1.041
8 1/2	1.219
10 1/4	3.569
10 1/2	3.613
11 1/2	3.680
11 1/2	3.632
11 1/2	3.645
11 3/4	3.651
12	3.658
12	3.734
12	3.913
14 6 3/4	4.432
14 6 3/4	4.439
14 10 1/2	4.489
14 11	4.534
15	4.572
15 2 1/4	4.629
15 2 1/2	4.636
15 2 3/4	4.642
18	4.775
18 1/2	5.664
18 1/2	5.702
20	6.096
30	9.144
30	9.183
30	10.204
30	12.276
30	12.776
44 11 1/2	14.797
46	17.136
46	18.212
46	19.405
66	20.117
66	21.298
66	21.565
66	22.084
82	25.003
82	25.121
AC 50	SC H
4 1/4	107.5
4 1/2	113.3
4 3/4	120.1





Planning Certificate Under Section 10.7(2) and (5)

Environmental Planning & Assessment Act 1979

InfoTrack Pty Ltd
GPO BOX 4029
SYDNEY 2000

Applicant's reference:
2603489

Certificate number: 1152
Certificate issue date: 29/04/2026
Transaction ID: 666106
Certificate fee: \$167.00 (standard)

Description of Property

Address: 21 Norfolk Street PADDINGTON NSW 2021
Title: LOT: A DP: 447337
Parish: Alexandria
County: Cumberland

This planning certificate should be read in conjunction with the *Woollahra Local Environmental Plan 2014* and other relevant state policies. These are available on the NSW legislation website at www.legislation.nsw.gov.au

The land to which this certificate relates, being the lot or one of the lots described in the corresponding application, is shown in the Council's records as being situated at the street address described on page 1 of this certificate.

It is the applicant's responsibility to confirm that the legal description of the lot to which the application relates is accurate and current. Council does not check the accuracy or currency of the information; nor does Council have the copyright to this information.

The legal description of land is obtained from NSW Land and Property Information. Applicants must verify all property and lot information with NSW Land and Property Information. The information contained in this certificate relates only to the lot described on the certificate.

Where the street address comprises more than one lot in one or more deposited plans or strata plans, separate planning certificates can be obtained upon application for the other lots. Those certificates may contain different information than is contained in this certificate.

Section 10.7(2) Details

In accordance with section 10.7(2) of the *Environmental Planning and Assessment Act 1979*, at the date of this certificate the following information is provided in respect of the prescribed matters to be included in a planning certificate.

1. NAMES OF RELEVANT LOCAL ENVIRONMENTAL PLANNING INSTRUMENTS

(a) The following local environmental planning instrument applies to the land:

Woollahra Local Environmental Plan 2014 (commenced 23 May 2015)

(b) Zone:

R2 Low Density Residential

(c) Development that may be carried out within the zone without development consent:

Home occupations; Roads

(d) Development that may be carried out within the zone with development consent:

Attached dwellings; Bed and breakfast accommodation; Business premises; Centre-based child care facilities; Community facilities; Dual occupancies; Dwelling houses; Environmental protection works; Group homes; Home occupations (sex services); Information and education facilities; Office premises; Oyster aquaculture; Pond-based aquaculture; Public administration buildings; Recreation areas; Respite day care centres; Secondary dwellings; Semi-detached dwellings; Shops; Tank-based aquaculture

Also refer to Schedule 1 of the LEP "Additional permitted uses" to see if this schedule applies to your land.

Note that:

- business premises
- a community facility
- an information and education facility
- office premises
- a public administration building, or
- a shop

are only permitted in a residential zone, subject to clause 6.6 Use of existing non-residential buildings in residential zones. Refer to clause 6.6 for the requirements.

(e) Development that is prohibited within the zone:

Any development not specified in item (c) or (d) above.

(f) Do any additional permitted uses apply to the land?

No

(g) Do any development standards apply to the land that fix minimum land dimensions for the erection of a dwelling house on the land? If yes, what are the fixed minimum dimensions?

No

(h) Is the land in an area of outstanding biodiversity value under the *Biodiversity Conservation Act 2016*?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

- (i) Is the land located in a heritage conservation area under the provisions of the local environmental plan applying to the land?

Yes: Paddington Heritage Conservation Area

- (j) Is there an item of environmental heritage situated on the land under the provisions of the local environmental plan applying to the land?

No

2. NAMES OF PROPOSED LOCAL ENVIRONMENTAL PLANNING INSTRUMENTS

The following proposed environmental planning instruments, including a planning proposal for a LEP or a draft environmental planning instrument have been the subject of community consultation or are on public exhibition under the *Environmental Planning and Assessment Act 1979* (unless the Director-General has notified Council that the making of the proposed instrument has been deferred indefinitely or has not been approved).

Planning proposal for 8-10 New McLean Street, Edgecliff

Details: A planning proposal has been prepared for 8-10 McLean Street, Edgecliff (SP20548) to amend the *Woollahra Local Environmental Plan 2014* to increase the permitted building height from 10.5m to RL91, increase the permitted floor space ratio from 0.75:1 to 3.7:1, and insert new clauses for net dwelling loss, apartment mix, affordable housing and the preparation of a site specific development control plan.

Exhibition period: Monday 26 May to Tuesday 24 June 2025

Planning proposal to address net dwelling loss

Details: The planning proposal seeks to insert a new clause into the *Woollahra Local Environmental Plan 2014* to minimise instances where the total number of dwellings on a site is reduced by new development. Under the proposal, losses would be limited to one dwelling or 15% (whatever is greater) of existing dwellings. The changes apply to the whole Woollahra Local Government Area.

Exhibition period: Wednesday 15 October to Wednesday 26 November 2025

FSR Housekeeping Planning Proposal

Details: A planning proposal has been prepared to amend the *Woollahra Local Environmental Plan 2014* to introduce floor space ratio (FSR) controls for certain development in the R2 Low Density Residential zone, replacing remaining floorplate controls in the Woollahra DCP 2015. This excludes land in the Paddington, Watsons Bay and Woollahra Heritage Conservation Areas (HCAs). The proposal also seeks to clarify FSR exemptions for certain residential development in these HCAs.

Exhibition period: Wednesday 19 November to Friday 19 December 2025

Planning proposal for Oxford Street Properties and Centennial Flats

Details: A planning proposal has been prepared to amend Schedule 5 and the Heritage Maps of the *Woollahra Local Environmental Plan 2014* to list five buildings within the Woollahra Local Government

Area as local heritage items. The buildings proposed for heritage listing are:

- “Centennial Flats – residential flat building, including interiors” at 2A Queen Street Woollahra (Lot 4, Lot 5, Lot 6, DP 15117)
- “Former gymnasium, restaurant and nightclub” at 60-80 Oxford Street Woollahra (previously known as 78-80 Oxford Street), (part of Lot 103, DP 1290591)
- “Victorian Rustic Gothic Terraces heritage item group” (see also 84 and 86 Oxford Street, Woollahra) at 82 Oxford Street Woollahra (Lot 11, DP 598783)
- “Victorian Rustic Gothic Terraces heritage item group” (see also 82 and 86 Oxford Street, Woollahra) at 84 Oxford Street Woollahra (Lot 2, DP 225838)
- “Victorian Rustic Gothic Terraces heritage item group” (see also 82 and 84 Oxford Street, Woollahra) at 86 Oxford Street Woollahra (Lot 3, DP 225838)

Exhibition period: Wednesday 11 February to Friday 27 March 2026

3. NAMES OF RELEVANT DEVELOPMENT CONTROL PLANS

The following development control plans have been prepared by Council under the *Environmental Planning and Assessment Act 1979*, Division 3.6 (including any made by the Council under section 72 of the Act before repeal of that section).

(a) The following development control plan applies to the land:

Woollahra Development Control Plan 2015 (commenced 23 May 2015)

4. NAMES OF RELEVANT DEVELOPMENT CONTROL PLANS PREPARED BY THE DIRECTOR GENERAL

The following development control plans have been prepared by the Planning Secretary under the *Environmental Planning and Assessment Act 1979*, Division 3.6 (including any made by the Director-General under section 51A, before the repeal of that section).

Sydney Harbour Foreshores and Waterways Area Development Control Plan 2005

This DCP applies to certain land within the Woollahra Municipality being land within the Foreshores and Waterways area identified on the Sydney Regional Environmental Plan (Sydney Harbour Catchment) 2005 - Foreshores and Waterways Area Map under *State Environmental Planning Policy (Biodiversity and Conservation) 2021*, Chapter 10.

5. NAMES OF DRAFT DEVELOPMENT CONTROL PLANS

The following draft development control plans have been the subject of community consultation or are on public exhibition under the *Environmental Planning and Assessment Act 1979*.

Draft Woollahra Development Control Plan 2015 (Amendment No 36)

Details: The updates seek to remove floorplate controls in their entirety, which currently apply to certain land uses (such as child care centres and office premises) and replace them with FSR controls in the Woollahra LEP 2014. The changes only apply to properties in the R2 Low Density Residential zone, outside of the Paddington, Watsons Bay and Woollahra Heritage Conservation Areas.

Exhibition period: Wednesday 19 November to Friday 19 December 2025

6. NAMES OF RELEVANT STATE ENVIRONMENTAL PLANNING POLICIES

Below is a list of all State environmental planning policies that apply to the Woollahra Municipality.

Depending on circumstances set down in each SEPP, the policy may be specifically applicable to the land that is the subject of this certificate. You are advised to review the policy for the necessary

details. Refer to NSW Department of Planning and Environment.

- State Environmental Planning Policy (Biodiversity and Conservation) 2021
- State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
- State Environmental Planning Policy (Housing) 2021
- State Environmental Planning Policy (Industry and Employment) 2021
- State Environmental Planning Policy (Planning Systems) 2021
- State Environmental Planning Policy (Resilience and Hazards) 2021
- State Environmental Planning Policy (Resources and Energy) 2021
- State Environmental Planning Policy (Sustainable Buildings) 2022
- State Environmental Planning Policy (Transport and Infrastructure) 2021

7. NAMES OF PROPOSED STATE ENVIRONMENTAL PLANNING POLICIES

The following proposed State Environmental Planning Policies have been the subject of community consultation or on public exhibition under the *Environmental Planning and Assessment Act 1979* (unless the Director-General has notified Council that the making of the proposed instrument has been deferred indefinitely or has not been approved).

Nil

8. CONTRIBUTIONS PLAN

The following contributions plan under the *Environmental Planning and Assessment Act 1979*, Division 7.1 may apply to the land:

- Woollahra Section 7.12 Development Contributions Plan 2022 (Amendment 3) (27 June 2025)

Is the land in a special contributions area under the Act, Division 7.1?

No

Is there a proposed contribution plan that may apply to the land that has been subject of community consultation or on public exhibition under the Act, Division 7.1?

No

9. COMPLYING DEVELOPMENT

Is the land, land on which complying development may be carried out under the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*?

Housing Code

Complying development under the Housing Code may not be carried out on the land (unless the development is a detached outbuilding, detached development (other than a detached studio) or a swimming pool) because the land is within a heritage conservation area or a draft heritage conservation area.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Rural Housing Code

Rural Housing Code is not applicable to Woollahra Local Government Area.

Low Rise Housing Diversity Code

Complying development under the Low Rise Housing Diversity Code may not be carried out because the land is within a heritage conservation area or a draft heritage conservation area.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Pattern Book Development Code

Complying development under the Pattern Book Development Code may not be carried out because the land is within a heritage conservation area or a draft heritage conservation area.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Greenfield Housing Code

Greenfield Housing Code is not applicable to Woollahra Local Government Area.

Inland Code

Inland Code is not applicable to Woollahra Local Government Area.

Housing Alterations Code

Complying development under the Housing Alterations Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

General Development Code

Complying development under the General Development Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Industrial and Business Alterations Code

Complying development under the Commercial and Industrial Alterations Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Industrial and Business Buildings Code

Complying development under the Commercial and Industrial (New Buildings and Additions) Code may not be carried out on the land (unless the development is a detached outbuilding or swimming pool) because the land is within a heritage conservation area or a draft heritage conservation area.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Container Recycling Facilities Code

Complying development under the Container Recycling Facilities Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Subdivisions Code

Complying development under the Subdivisions Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Demolition Code

Complying development under the Demolition Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Fire Safety Code

Complying development under the Fire Safety Code may be carried out on the land. Development standards apply.

Refer to the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for full details.

Are the complying development codes varied under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* clause 1.12 in relation to the land?

No

10. EXEMPT DEVELOPMENT

Is the land, land on which exempt development may be carried out under the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*?

Yes. Additional requirements apply to land that comprises or contains a heritage item or draft heritage item or is within a Heritage Conservation Area or draft Heritage Conservation Area. Refer to Woollahra LEP 2014 clause 5.10(3) and State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 for additional requirements.

11. AFFECTED BUILDING NOTICES AND BUILDING PRODUCT RECTIFICATION ORDERS

(a) Is there any affected building notice in force in respect of the land?

No

(b) Is there any building product rectification order in force in respect of the land that has not been fully complied with?

No

(c) Is there any outstanding notice of intention to make a building product rectification order?

No

Note: *Affected building notice* has the same meaning as in Part 4 of the *Building Products (Safety) Act 2017*.

Building product rectification order has the same meaning as in the *Building Products (Safety) Act 2017*.

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12. LAND RESERVED FOR ACQUISITION

Does an environmental planning instrument or proposed environmental planning instrument applying to the land make provision in relation to the acquisition of the land by an authority of the State, as referred to in the *Environmental Planning and Assessment Act 1979*, section 3.15?

No

13. ROAD WIDENING AND ROAD REALIGNMENT

Is the land affected by any road widening or road realignment under:

- (a) Division 2 of Part 3 of the Roads Act 1993; or
- (b) any environmental planning instrument; or
- (c) any resolution of the Council?

No

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14. FLOOD RELATED DEVELOPMENT CONTROLS

- (a) Is the land or part of the land within the flood planning area and subject to flood related development controls?

No

- (b) Is the land or part of the land between the flood planning area and the probable maximum flood and subject to flood related development controls?

Information on the location of the probable maximum flood is not currently available.

Note: Words and definitions used in this item have the same meaning as the Flood Plain Development Manual published by the NSW Government.

15. COUNCIL AND OTHER PUBLIC AUTHORITY POLICIES ON HAZARD RISK RESTRICTIONS

Is the land affected by a policy:

- (a) adopted by the Council that restricts the development of the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence, acid sulfate soils, contamination, aircraft noise, salinity, coastal hazards, sea level rise or another risk (other than flooding)?

Yes

Woollahra LEP 2014, clause 6.1 (Acid sulfate soils) may require an assessment of acid sulfate soils for certain types of development located on certain land identified on the Acid Sulfate Soils Map of the LEP.

Woollahra DCP 2015 includes a policy on contaminated land which may restrict the development of the land. This policy is implemented when zoning or land use changes are proposed on lands which have previously been used for certain purposes.

Woollahra DCP 2015 includes controls for development in sensitive locations to minimise impacts on natural coastal processes, including sea level rises and flooding.

Applicants must consider Council's DCP as well as State legislation including *State Environmental Planning Policy (Resilience and Hazards) 2021* – Chapter 4 Remediation of land.

- (b) adopted by another public authority and notified to the Council for the express purpose of its adoption by that authority being referred to in planning certificates issued by the Council, that restricts the development of the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence, acid sulfate soils, contamination, aircraft noise, salinity, coastal hazards, sea level rise or another risk (other than flooding)?

No

16. MATTERS ARISING UNDER THE CONTAMINATED LAND MANAGEMENT ACT 1997

- (a) Is the land (or part of the land) to which this certificate relates significantly contaminated land?

No

- (b) Is the land to which this certificate relates subject to a management order?

No

- (c) Is the land to which this certificate relates the subject of an approved voluntary management proposal?

No

- (d) Is the land to which this certificate relates subject to an ongoing maintenance order?

No

- (e) Is the land to which this certificate relates the subject of a site audit statement?

No

Note: These matters are prescribed by section 59 (2) of the *Contaminated Land Management Act 1997* as additional matters to be specified in a planning certificate. Section 53B requires site auditors to furnish local authorities with copies of audit statements relating to site audits for the purposes of statutory requirements.

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

17. BUSH FIRE PRONE LAND

Is the land to which this certificate relates bush fire prone land?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

18. LOOSE-FILL ASBESTOS INSULATION

Does the land include any residential premises, within the meaning of the *Home Building Act 1989* Division 1A, Part 8 Division 1A, listed on the register kept under that Division.

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital

for the proposed end use, then it should be verified by the applicant.

19. MINE SUBSIDENCE

Is the land proclaimed to be a mine subsidence district within the meaning of the *Coal Mine Subsidence Compensation Act 2017*?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

20. PAPER SUBDIVISION INFORMATION

Is there a development plan adopted by a relevant authority that applies to the land or that is proposed to be subject to a consent ballot?

No

21. PROPERTY VEGETATION PLANS

Is the land the subject of a property vegetation plan approved under Part 4 of the *Native Vegetation Act 2003* (and that continues in force)?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

22. BIODIVERSITY STEWARDSHIP SITES

Is the land a biodiversity stewardship site under a biodiversity stewardship agreement under Part 5 of the *Biodiversity Conservation Act 2016*?

No

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23. BIODIVERSITY CERTIFIED LAND

Is the land biodiversity certified land under Part 8 of the *Biodiversity Conservation Act 2016*?

No

24. ORDERS UNDER TREES (DISPUTES BETWEEN NEIGHBOURS) ACT 2006

Has an order been made under the *Trees (Disputes Between Neighbours) Act 2006* to carry out work in relation to a tree on the land, but only if Council has been notified of the order.

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

25. ANNUAL CHARGES UNDER LOCAL GOVERNMENT ACT 1993 FOR COASTAL PROTECTION SERVICES THAT RELATE TO EXISTING COASTAL PROTECTION WORKS

Has the owner, or a previous owner, of the land given written consent to the land being subject to annual charges under section 496B of the *Local Government Act 1993* for coastal protection services that relate to existing coastal protection works (within the meaning of section 553B of that Act)?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council. If the information is vital for the proposed end use, then it should be verified by the applicant.

26. DEVELOPMENT CONSENT CONDITIONS FOR SENIORS HOUSING

Are there any terms of a kind referred to in Chapter 3, Part 5, clause 88(2) of *State Environmental Planning Policy (Housing) 2021* that have been imposed as a condition of development consent granted after 11 October 2007 in relation to the land?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

27. SITE COMPATIBILITY CERTIFICATES AND DEVELOPMENT CONSENT CONDITIONS FOR AFFORDABLE RENTAL HOUSING

Is there a current site compatibility certificate under *State Environmental Planning Policy (Housing) 2021*, or a former site compatibility certificate, of which the Council is aware, in relation to proposed development on the land?

No

Are there any terms of a kind referred to in *State Environmental Planning Policy (Housing) 2021*, Chapter 2, Part 2, Division 1 or 5, clause 21(1) or 40(1) that have been imposed as a condition of consent to a development application in respect of the land?

No

Are there any terms of a kind referred to in *State Environmental Planning Policy (Affordable Rental Housing) 2009*, clause 17(1) or 38(1)?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

28. WATER OR SEWERAGE SERVICES

If water or sewerage services are, or are to be, provided to the land under the *Water Industry Act 2006*, a statement to that effect.

Not applicable.

29. SPECIAL ENTERTAINMENT PRECINCTS

Whether the land or part of the land is in a special entertainment precinct within the meaning of the *Local Government Act 1993*, section 202B.

No

30. INTERIM DEVELOPMENT IN FUTURE INFRASTRUCTURE CORRIDORS

If *State Environmental Planning Policy (Transport and Infrastructure) 2021*, section 4.7A applies to the land, a condition of development consent granted in relation to the land that is a condition of the concurrence granted by Transport for NSW under that section.

No

Section 10.7(5) Details

This certificate is directed to the following relevant matters affecting the land.

Note: When information pursuant to section 10.7(5) is requested the Council is under no obligation to furnish any of the information supplied herein pursuant to that section.

Council draws your attention to section 10.7(6), which states that a Council shall not incur any liability in respect of any advice provided in good faith pursuant to sub-section (5). The absence of any reference to any matter affecting the land shall not imply that the land is not affected by any matter not referred to in this planning certificate.

1. OTHER CONTROLS FROM WOOLLAHRA LOCAL ENVIRONMENTAL PLAN 2014

a) What is the minimum size of any lot resulting from a subdivision of land (as shown on the Lot Size Map)? Refer to clause 4.1 Minimum subdivision lot size.

230 square metres

b) Is the land affected by a foreshore building line (as shown on the Foreshore Building Line Map)? Refer to clause 6.4 Limited development on foreshore areas.

No

2. STATE HERITAGE REGISTER ITEMS

Is the land identified under the provisions of the *Heritage Act 1977*?

No

Disclaimer: This statement is based on information supplied by a third party public authority. The accuracy of this information has not been verified by Woollahra Council and if the information is vital for the proposed end use, then it should be verified by the applicant.

3. COMMONWEALTH HERITAGE LIST

Is the land identified as a Commonwealth Heritage Place under the provisions of the *Environment Protection and Biodiversity Conservation Act 1999*?

No

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3A. ABORIGINAL HERITAGE

The *Woollahra Local Government Area Aboriginal Heritage Study* (endorsed by Council on 26 July 2021) identifies areas that have Aboriginal Heritage Sensitivity.

Council's *Aboriginal Heritage Sensitivity Map* identifies whether a parcel of land is in an Area of Aboriginal Heritage Sensitivity or is in an Area of Potential Aboriginal Heritage Sensitivity. Applicants are encouraged to undertake an assessment prior to the lodgement of their application.

If your property is identified on the map, Council's Development Application (DA) Guide contains information on how to proceed and how to determine if an Aboriginal Heritage Impact Assessment is

required.

The *Aboriginal Heritage Sensitivity Map* and DA Guide are available on Council's website.

4. RESOLUTION OF COUNCIL TO PREPARE A PLANNING PROPOSAL FOR A LOCAL ENVIRONMENTAL PLAN

A list of Council decisions to prepare a planning proposal for a local environmental plan is provided below. These planning proposals have not been exhibited under section 57 of the *Environmental Planning and Assessment Act 1979*.

Property affected: See terms of resolution

Date of decision: 25 August 2025

Relevant terms of the resolution:

Item No 12.1.2

- B. Endorse the Planning Proposal as contained at Attachment 1 of the report to the Environmental Planning Committee of 4 August 2025 to list the following five buildings (5) buildings as local heritage items in Schedule 5 and on the associated Heritage Maps of the Woollahra Local Environmental Plan 2014:
- i. "Centennial Flats – residential flat building, including interiors" at 2A Queen Street Woollahra (Lot 4, Lot 5, Lot 6, DP 15117)
 - ii. "Former gymnasium, restaurant and nightclub" at 60-80 Oxford Street Woollahra (previously known as 78-80 Oxford Street), (part of Lot 103, DP 1290591)
 - iii. "Victorian Rustic Gothic Terraces heritage item group" (see also 84 and 86 Oxford Street, Woollahra) at 82 Oxford Street Woollahra (Lot 11, DP 598783)
 - iv. "Victorian Rustic Gothic Terraces heritage item group " (see also 82 and 86 Oxford Street, Woollahra) at 84 Oxford Street Woollahra (Lot 2, DP 225838)
 - v. "Victorian Rustic Gothic Terraces heritage item group " (see also 82 and 84 Oxford Street, Woollahra) at 86 Oxford Street Woollahra (Lot 3, DP 225838)

Property affected: See terms of resolution

Date of decision: 25 August 2025

Relevant terms of the resolution:

Item No 12.3.1

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Strategic and Corporate Committee of 18 August 2025 to list the following building as a local heritage item in Schedule 5 and associated Heritage Maps of the Woollahra Local Environmental Plan 2014, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for a Gateway Determination to allow public exhibition:
- vii. "Orange Tree Grove" – residential flat building and grounds, including *Cyathea australis*, *Cyathea cooperi*, *Angophora costata*, excluding dwelling interiors, 8 Bennetts Grove Avenue, Paddington (SP 15048)

Property affected: See terms of resolution

Date of decision: 25 August 2025

Relevant terms of the resolution:

Item No 12.3.2

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Strategic and Corporate Committee of 18 August 2025 to list the following seventeen buildings as local

heritage items in Schedule 5 and associated Heritage Maps of the Woollahra Local Environmental Plan 2014, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for a Gateway Determination to allow public exhibition:

- vi. *Residential flat building - excluding dwelling interiors*, 10 Etham Avenue, Darling Point (Lot X and Lot Y, DP 434806)
- vii. *"Goomerah Court" - residential flat building, excluding dwelling interiors*, 9 Goomerah Crescent, Darling Point (Lot 2, DP 1036705)
- viii. *"President Towers" - residential flat building and grounds, excluding dwelling interiors*, 75-79 Darling Point Road, Darling Point (SP 6673)
- ix. *"Glenhurst Gardens" - residential flat building and grounds, excluding dwelling interiors*, 11 Yarranabbe Road, Darling Point (Lot 5, DP 1066997).
- x. *"Rosemont Gardens" - residential flat building and grounds, excluding dwelling interiors*, 93 Ocean Street, Woollahra (SP 10701)
- xi. *"Wingate" – residential flat building, excluding dwelling interiors*, 21 Manning Road, Double Bay (SP 187)
- xii. *"Orange Tree Grove" considered as a stand-alone item (Item 12.3.1 of the Council Meeting 25 August 2025)*
- xiii. *"Twenty Seven" - residential flat building and grounds, excluding dwelling interiors*, 27 Sutherland Crescent, Darling Point (SP 692)
- xiv. *"Stephen Towers" – residential flat building, excluding dwelling interiors*, 40 Stephen Street, Paddington (SP 11374)
- xv. *"Broadwaters" - residential flat building and grounds, excluding dwelling interiors*, 11 Sutherland Crescent, Darling Point (SP 963, SP 31982)
- xvi. *"Yarranabbe Gardens" residential flat building and grounds, excluding dwelling interiors*, 87-97 Yarranabbe Road, Darling Point (Lot 1 DP 205510)
- xvii. *"Hamilton House" and grounds – including interiors*, 48 Wentworth Road, Vaucluse (Lot 1 DP 947941)
- xviii. *"Stux House" – front (east), south and north elevations, mosaic*, 11 Cranbrook Road, Bellevue Hill (Lot 1 DP 28700)
- xix. *"Sten House" – house, including original internal elements*, 86B Victoria Road, Bellevue Hill (Lot 1 DP 540104)
- xx. *"St Marks Square" - residential flat building and townhouses, including lobby interior and fountain, excluding dwelling interiors*, 45 Ocean Avenue, Double Bay (SP 2795)
- xxi. *"Barrett House" – house, including interiors*, 132 Paddington Street, Paddington (Lot 1 DP 439064)
- xxii. *"Dalgleish House" - house and grounds, including interiors*, 29C Wunulla Road, Point Piper (Lot 1 DP 551578, Lot 1 DP 211954, & Lot 1 DP 1053864)

Property affected: 58-61 New Beach Road, Darling Point

Date of decision: 26 May 2025

Relevant terms of the resolution:

Item No: 14.12

- C. Request Staff to organise a meeting with the representatives of "The Penthouses" within the next four weeks to discuss potential amendments to the heritage inventory sheet so that it can be updated before the planning proposal is forwarded to the Department of Planning Housing and Infrastructure with a request for Gateway Determination to allow public exhibition.
- D. Endorse the Planning Proposal to list, as contained at **Attachment 1** of the report to the Environmental Planning Committee Meeting of 7 April 2025, **"The Penthouses"** – building (excluding dwelling interiors) at 58-61 New Beach Road, Darling Point (SP3143)

Property affected: 351 Edgecliff Road, Edgecliff & 351A Edgecliff Rd, Edgecliff

Date of decision: 28 April 2025

Relevant terms of the resolution:

Item No: 12.1.1

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Environmental Planning Committee of 7 April 2025 to list the following five buildings as local heritage items in Schedule 5 and associated Heritage Maps of the *Woollahra Local Environmental Plan 2014*, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for Gateway Determination to allow public exhibition:
- i. **“Arlington”** – building (excluding dwelling interiors) at 351 Edgecliff Road, Edgecliff & 351A Edgecliff Rd, Edgecliff (SP3017 & SP3380)

Property affected: 85 Drumalbyn Road, Bellevue
Date of decision: 28 April 2025
Relevant terms of the resolution:

Item No: 12.1.1

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Environmental Planning Committee of 7 April 2025 to list the following five buildings as local heritage items in Schedule 5 and associated Heritage Maps of the *Woollahra Local Environmental Plan 2014*, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for Gateway Determination to allow public exhibition:
- ii. **“Still House”** – building (excluding dwelling interiors) at 85 Drumalbyn Road, Bellevue Hill (SP88065)

Property affected: 8 Victoria Street, Watsons Bay
Date of decision: 28 April 2025
Relevant terms of the resolution:

Item No: 12.1.1

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Environmental Planning Committee of 7 April 2025 to list the following five buildings as local heritage items in Schedule 5 and associated Heritage Maps of the *Woollahra Local Environmental Plan 2014*, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for Gateway Determination to allow public exhibition:
- iii. **“Baxter House”** – building (excluding dwelling interiors) at 8 Victoria Street, Watsons Bay (Lot 11, DP1004606)

Property affected: 349 New South Head Road, Double Bay
Date of decision: 28 April 2025
Relevant terms of the resolution:

Item No: 12.1.1

- B. Endorse the Planning Proposal as contained at **Attachment 1** of the report to the Environmental Planning Committee of 7 April 2025 to list the following five buildings as local heritage items in Schedule 5 and associated Heritage Maps of the *Woollahra Local Environmental Plan 2014*, and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for Gateway Determination to allow public exhibition:
- iv. **“Bibaringa”** – building (excluding dwelling interiors) at 349 New South Head Road, Double Bay (SP62056)

Property affected: See terms of resolution
Date of decision: 28 April 2025

Relevant terms of the resolution:

Item No: 12.1.2

- B. Resolves to support the planning proposal as contained at Attachment 1 of the report to the Environmental Planning Committee of 7 April 2025 to revise controls for Double Bay Centre and that this forwarded to the Department of Planning, Housing and Infrastructure seeking a Gateway determination to allow public exhibition.

Property affected: See terms of resolution

Date of decision: 24 February 2025

Relevant terms of the resolution:

Item No: 12.3.1

- B. Resolves to support the planning proposal as contained at **Attachment 1** of the report to the Strategic and Corporate Committee of 17 February 2025 to revise controls for the Edgecliff Commercial Centre

Property affected: See terms of resolution

Date of decision: 23 March 2026

Relevant terms of the resolution:

Item No: 10.1.2

- A. Note the advice provided by the Woollahra Local Planning Panel from 5 February 2026 on the planning proposal to establish a broad based affordable housing contributions scheme applying to residential accommodation under the Woollahra Local Environmental Plan 2014.
- C. Forwards the amended planning proposal to the Department of Planning, Housing and Infrastructure seeking a Gateway determination to allow public exhibition.

Property affected: See terms of resolution

Date of decision: 24 February 2025

Relevant terms of the resolution:

Item No: 12.3.1

- G. Request staff to prepare a planning proposal to establish design excellence provisions for the whole Woollahra Local Government Area, and refer this to the Woollahra Local Planning Panel for advice.

Property affected: See terms of resolution

Date of decision: 8 April 2024

Relevant terms of the resolution:

- B. Endorse the planning proposal as contained at **Attachment 1** of the report to the Environmental Planning Committee of 2 April 2024 to list the following eight local heritage items and one heritage conservation area in Schedule 5 and on the Heritage Map of the *Woollahra Local Environmental Plan 2014* (subject to the removal of 4 Oswald Street/Lot 12, DP 3893 from the planning proposal) and resolves to forward this to the Department of Planning, Housing and Infrastructure with a request for Gateway Determination to allow public exhibition:
- i. 'Gruzman House', including interiors at 6–8 Oswald Street, Darling Point (Lot 3, DP 1197166).
 - ii. 'Winston House', including interiors at 20 New South Head Road, Edgecliff (SP

- 20728, SP 31826).
- iii. 'Portland Hall', including interiors and gardens at 48 New South Head Road, Edgecliff (Lot 1, DP 82089; Lot 1, DP 1107185; Lot 1, DP 921798).
 - iv. 'Cobham', including interiors and gardens at 166 New South Head Road, Edgecliff (SP 90371).
 - v. 'Brantwood Court', including interiors and gardens at 168 New South Head Road, Edgecliff (SP 11580)
 - vi. 'Brantwood Hall', including interiors and gardens at 170 New South Head Road, Edgecliff (SP 86720)
 - vii. Victorian Georgian Terrace group – three cottages at 543–547 Glenmore Road, Edgecliff (Lots 34, 35 and 36, DP 255233).
 - viii. Phoenix Palms in Oswald Street Reserve, Oswald Street, Darling Point (Road Reserve).
 - ix. The Brantwood Heritage Conservation Area, comprising five buildings between 164-180 New South Head Road, Edgecliff:
 - a. 164 New South Head Road (SP 16897)
 - b. 166 New South Head Road (SP 90371)
 - c. 168 New South Head Road (SP 11580)
 - d. 170 New South Head Road (SP 86720)
 - e. 172-180 New South Head Road (SP 10535)
-

5. COASTAL HAZARDS

An Estuary Planning Levels Report (August 2014) by Cardno is a supporting document to the Woollahra Development Control Plan 2015.

The Estuary Planning Levels Report identifies:

- foreshore properties which may be subject to current coastal inundation risks caused by local wind and wave setup, and/or wave run-up/overtopping; and
- foreshore properties which may be subject to future coastal inundation risks caused by sea level rise.

The report recommends planning controls to minimise the effects of coastal inundation risks. The Report can be inspected at Council or on Council's website.

6. RESOLUTIONS OF COUNCIL RELATING TO HERITAGE LISTINGS OR CONTRIBUTORY ITEMS IN DEVELOPMENT CONTROL PLANS

Property affected: See terms of resolution

Date of decision: 8 April 2024

Relevant terms of the resolution:

- D. Requests staff to organise a Councillor site visit for the property at 4 and 6-8 Oswald Street, Darling Point to allow Council to make a decision as to how to proceed with the heritage listing of 4 Oswald Street, Darling Point.
-

Property affected: See terms of resolution

Date of decision: 11 November 2019

Relevant terms of the resolution:

Item No: 16.4

- A. Requests staff prepare a report on arts and crafts buildings, including any examples of outstanding significance for listing in Schedule 5 of the Woollahra LEP.
-

Property affected: See terms of resolution

Date of decision: 31 October 2022

Relevant terms of the resolution:

Item No: 13.1

- D. If appropriate, that staff include in a Section 10.7 Planning Certificate (Part 5) information relating to those properties included in the Leslie Wilkinson Study which have not progressed, as itemised below:
- i. 69 Hopetoun Avenue, Vaucluse
 - ii. 82 Wentworth Road, Vaucluse
 - iii. 6 Princes Avenue, Vaucluse
 - iv. 3 Olola Avenue, Vaucluse
 - v. 83A Drumalbyn Road, Bellevue Hill
 - vi. 29 Wentworth Road, Vaucluse.

Property affected: See terms of resolution

Date of decision: 27 March 2023

Relevant terms of the resolution:

Item No: 13.1 (R1)

- D. THAT Council endorse a nomination to the State Heritage Register of Gaden House at 24 Bay Street, Double Bay (2A Cooper Street) (Lots 11 and 12 in DP 4606).

Property affected: Refer to the terms of the resolution

Date of decision: 10 July 2023

Relevant terms of the resolution:

Item No: 13.1 (R3)

THAT:

- D. Council staff carry out an investigation into the heritage significance of the properties identified in the late correspondence from the Darling Point Society which was tabled at the Council meeting of 10 July 2023, subject to the investigation being identified as a medium priority in the Heritage Gap Analysis.

Property affected: Refer to the terms of the resolution

Date of decision: 11 September 2023

Relevant terms of the resolution:

Item No: 13.1(R5)

THAT Council:

- C. Resolves:
- i. To initiate a heritage study for the Rose Bay Centre,
 - ii. To identify the Rose Bay Centre heritage study as a new medium priority in the Heritage Action Plan under the Woollahra Heritage Gap Analysis, and
 - iii. That the Rose Bay Centre heritage study be included as an action in the 23/24 Operational Plan/Budget.

7. DRAFT WATSONS BAY FLOOD RISK MANAGEMENT STUDY AND PLAN (MAY 2016)

The Draft Watsons Bay Flood Risk Management Study and Plan (May 2016) has been prepared in accordance with the NSW Floodplain Development Manual. The Draft Plan aims to provide solutions

to existing flooding problems and ensure that new development is compatible with the flood hazard and does not create additional flooding problems.

The Woollahra Local Environmental Plan 2014 maps land that is identified as flood planning area, and is therefore subject to the controls in Cl 6.3 flood planning. The Draft Plan includes additional properties in Watsons Bay that are in the flood planning area.

These properties are: **14-16, 18-25 Cliff Street; 1-2, 43 Cove Street; HMAS Watson (Lot 3 DP 605078); 1-2, 6-7, 11-12, 10-24 Marine Parade; 31, 33 Pacific Street; Robertson Park (22 Military Road); 2 Short Street; Sydney Harbour National Park (Lot 1, 2 DP 605078) and 25 Victoria Street.**

The Draft Plan includes the following properties that are not identified as flood planning area: **1, 3, 5, 7 Victoria Street and 29 Cliff Street.**

The report can be inspected at Council or on Council's website. For further information contact Council's engineer.

8. HERITAGE GAP ANALYSIS

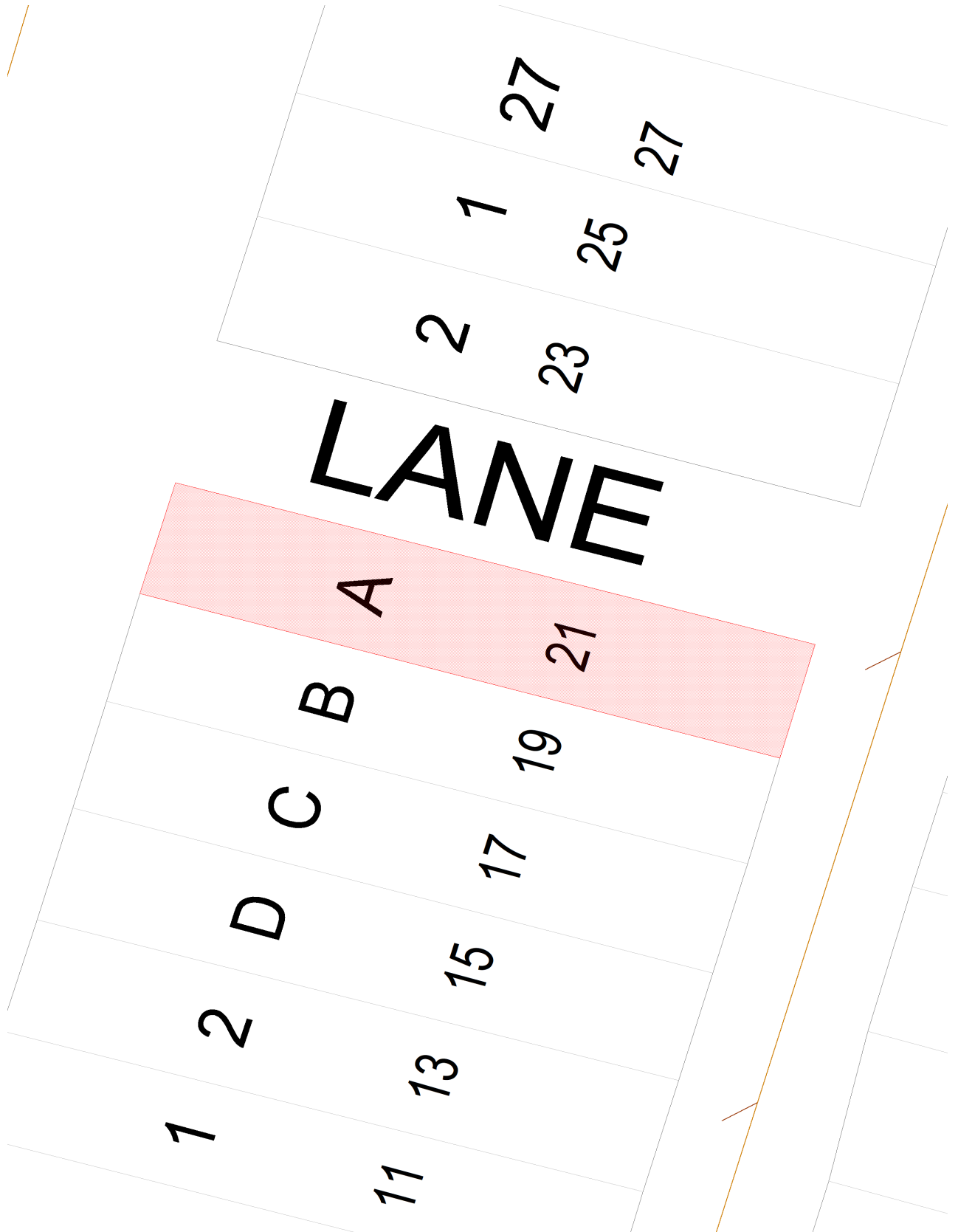
At the meeting of 22 November 2021, it was resolved:

- A. THAT Council endorses the Draft Woollahra Heritage Gap Analysis as contained in **Annexure 1** of the report to the Environmental Planning Committee of 8 November 2021, subject to:
 - i. Changing the timeframe for the high priority actions to 18 months, and the medium priority actions to three years.

www.woollahra.nsw.gov.au

Service Location Print

Application Number: 8005208661



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Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Asset Information

Legend

Sewer		Property Details	
Sewer Main (with flow arrow & size type text)		Boundary Line	
Disused Main		Easement Line	
Rising Main		House Number	
Maintenance Hole (with upstream depth to invert)		Lot Number	
Sub-surface chamber		Proposed Land	
Maintenance Hole with Overflow chamber		Sydney Water Heritage Site (please call 132 092 and ask for the Heritage Unit)	
Ventshaft EDUCT			
Ventshaft INDUCT			
Property Connection Point (with chainage to downstream MH)			
Concrete Encased Section			
Terminal Maintenance Shaft			
Maintenance Shaft			
Rodding Point			
Lamphole			
Vertical			
Pumping Station			
Sewer Rehabilitation			
Pressure Sewer		Water	
Pressure Sewer Main		WaterMain - Potable (with size type text)	
Pump Unit (Alarm, Electrical Cable, Pump Unit)		Disconnected Main - Potable	
Property Valve Boundary Assembly		Proposed Main - Potable	
Stop Valve		Water Main - Recycled	
Reducer / Taper		Special Supply Conditions - Potable	
Flushing Point		Special Supply Conditions - Recycled	
		Restrained Joints - Potable	
		Restrained Joints - Recycled	
		Hydrant	
		Maintenance Hole	
		Stop Valve	
		Stop Valve with By-pass	
		Stop Valve with Tapers	
		Closed Stop Valve	
		Air Valve	
		Valve	
		Scour	
		Reducer / Taper	
		Vertical Bends	
		Reservoir	
		Recycled Water is shown as per Potable above. Colour as indicated	
Vacuum Sewer		Private Mains	
Pressure Sewer Main		Potable Water Main	
Division Valve		Recycled Water Main	
Vacuum Chamber		Sewer Main	
Clean Out Point		Symbols for Private Mains shown grey	
Stormwater			
Stormwater Pipe			
Stormwater Channel			
Stormwater Gully			
Stormwater Maintenance Hole			

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Pipe Types

ABS	Acrylonitrile Butadiene Styrene	AC	Asbestos Cement
BRICK	Brick	CI	Cast Iron
CICL	Cast Iron Cement Lined	CONC	Concrete
COPPER	Copper	DI	Ductile Iron
DICL	Ductile Iron Cement (mortar) Lined	DIPL	Ductile Iron Polymeric Lined
EW	Earthenware	FIBG	Fibreglass
FL BAR	Forged Locking Bar	GI	Galvanised Iron
GRP	Glass Reinforced Plastics	HDPE	High Density Polyethylene
MS	Mild Steel	MSCL	Mild Steel Cement Lined
PE	Polyethylene	PC	Polymer Concrete
PP	Polypropylene	PVC	Polyvinylchloride
PVC - M	Polyvinylchloride, Modified	PVC - O	Polyvinylchloride, Oriented
PVC - U	Polyvinylchloride, Unplasticised	RC	Reinforced Concrete
RC-PL	Reinforced Concrete Plastics Lined	S	Steel
SCL	Steel Cement (mortar) Lined	SCL IBL	Steel Cement Lined Internal Bitumen Lined
SGW	Salt Glazed Ware	SPL	Steel Polymeric Lined
SS	Stainless Steel	STONE	Stone
VC	Vitrified Clay	WI	Wrought Iron
WS	Woodstave		

Further Information

Please consult the Dial Before You Dig enquiries page on the Sydney Water website.

For general enquiries please call the Customer Contact Centre on 132 092

In an emergency, or to notify Sydney Water of damage or threats to its structures, call 13 20 90 (24 hours, 7 days)

Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Sewer Service Diagram

Application Number: 8005208657

HS.73G

METROPOLITAN WATER SEWERAGE AND DRAINAGE BOARD

DIAGRAM OF SANITARY DRAINAGE

Municipality of *Woolahra* (Paddington) Diagram No. *461988*

SYMBOLS AND ABBREVIATIONS

□ Boundary Trap	RV. Reflux Valve	I.P. Induct Pipe	Bsn. Basin
■ Pit	CE. Cleaning Eye	M.F. Mica Flap	Shr. Shower
GI Grease Interceptor	VERT. Vertical Pipe	T. Tubs	W.I.P. Wrought Iron Pipe
Gully	V.P. Vent. Pipe	K.S. Kitchen Sink	C.I.P. Cast Iron Pipe
P.T. P. Trap	S.V.P. Soil Vent. Pipe	W.C. Water Closet	F.W. Floor Waste
RS Reflux Sink	D.C.C. Down Cast Cowl	B.W. Bath Waste	W.M. Washing Machine

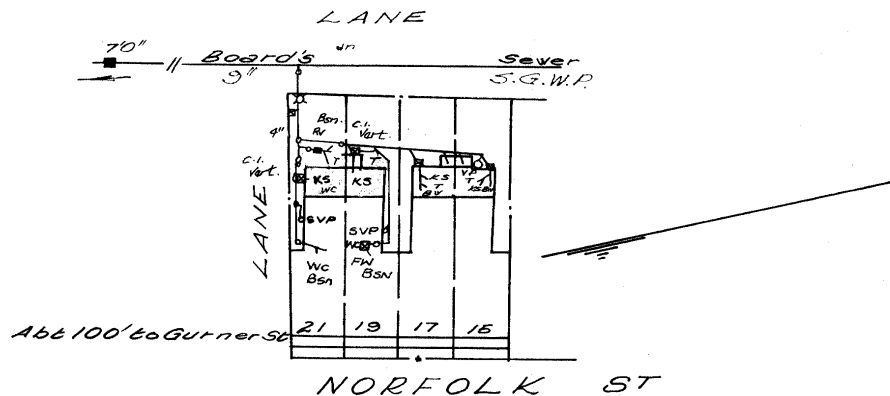
Existing drainage shown by black lines Scale: 40 Feet to an inch ~~Proposed new drainage shown by full blue lines.~~

~~This diagram is the property of the Owner and is to be returned to him on completion of the work.~~

Subject to application, certificates for drainage and sanitary plumbing will be issued to the owner when the work is completed and passed by the Board's Inspector.

~~The Board accepts no responsibility for the suitability of the diagram in relation to the eventual position of the Board's sewer. When the sewer becomes available it will be necessary to apply for a revised diagram.~~

This work must be carried out in accordance with the Board's By-laws.



SHEET No. *721*

353'728

1095 507

19

FOR ENGINEER-IN-CHIEF

OFFICE USE ONLY			
W.C.	Designed by	DATE	Inspector
Bth	Inspector	/ /	First Visit
Shr		/ /	Superv'n
Bsn		/ /	Passed
K.S	Chief Inspector	/ /	Date
T		/ /	Inspector
Pig		/ /	Checked
Dge.Int.	DESIGN	/ /	COMPENSATION - MH. AC. VS.
Dge.Ext.		/ /	File

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Disclaimer

The information in this diagram shows the private wastewater pipes on this property. It may not be accurate or to scale and may not show our pipes, structures or all property boundaries. If you'd like to see these, please buy a **Service location print**.